

INTRODUCTION TO TORT

WHAT IS A TORT?

Tort law covers a **wide range of circumstances**, including road traffic accidents, a patient suffering injury due to medical negligence, wrongful defamation, or a visitor claiming damages if they suffered an accident on someone's land.

Tort = a breach of one/more of the general duties set by civil law.

Tortfeasor = the person committing the tort.

Victim = the person suffering an injury/damage as a result of the tort.

When a tort occurs, the law permits the affected party to seek **compensation or damages** from the responsible party. Depending on the case, **additional remedies** may also be available.

THE CLASSIFICATION OF TORT LAW:

Tort law allows the **victim** who has **suffered a damage** as a result of a tortious act, **bring a claim**, even if they do not have a claim for breach of contract or a claim in criminal law.

Tort law and Criminal law:

	Tort law	Criminal law
Standard of proof	Balance of probabilities	Beyond reasonable doubt
Purpose	Compensation	Punishment
Interests infringed	Victim's interests	Public interest

Tort is different from Criminal law in a number of respects, and in most cases, even if a criminal offence has been committed, it is more **beneficial for the victim to bring a claim in tort** for compensation.

Not only because **criminal compensation is a lot lower** than tortious compensation, but also because tort claims are often covered by **insurance** which allows for quick and predictable payments.

Example:

Car accident claims commonly attract both tortious and criminal liability. If this is the case, the negligent driver may be prosecuted by the Crown Prosecution Service and sued by the victim for compensation for their injuries.

Tort law and Contract law:

	Tort law	Contract law
Standard of proof	Balance of probabilities	Balance of probabilities
Duties owed	People in general	The parties
Duties infringed	Duties fixed by law	Duties agreed by the parties

A tort is an infringement of a general duty established by law, while a breach of contract involves violating a duty that a party has voluntarily accepted.

In relation to contract claims, obligations are typically **limited to the parties** involved in the contract. In contrast, tort law imposes **duties towards the general public** or specific groups such as employees.

The primary goal of tort actions is to provide compensation for damages, whereas contract law mainly enforces agreements.

It is possible for someone to be liable for **both a tort and a breach of contract simultaneously**.

Example:

The sale of goods and provision of services commonly allow for the parties to bring a claim both in contract and tort. A breach of contract for sale of goods will also open doors for product liability claims in relation to defective products and a breach of contract for the provision of services will also allow for negligence claims.

GENERAL PRINCIPLES OF TORT:

The key principles in tort law involve establishing the following:

1. **The Claimant's interest** – this must be an interest which requires protection.
2. **The Defendant's act interfered with the Claimant's interest** – either intentionally or unintentionally, causing a consequence to the Claimant for which the Defendant should be held responsible.
AND
3. The Claimant must have **suffered a loss as a result of the Defendant's acts** – this includes causation, typically both factual and legal causation must be satisfied.

Intentions:

Unlike Criminal law (except for strict liability crimes), the intentions of the Defendant will be **irrelevant** as long as they had a duty of care towards the Claimant which they have breached.

Instead of the requirement of intention that could be seen in criminal cases, tort law relies on "fault". **When negligent, the tortfeasor was at fault** in some way. On the other hand, there are also **no-fault torts**, these are also called strict liability torts.

Compensation:

The purpose of compensation for tort is to **put the victim back in the position they would have been had the tort never been committed**.

TORT CLAIMS:

There are a number of different torts which are all actionable by the victim. The most common and important tort is **negligence**.

Other common claims:

1. **Intentional torts** – conversion and trespass to land, to the person and to goods.
2. **Employers' liability** – the liability of the employer towards their employees.
3. **Vicarious liability** – the liability of the employer where the tort has been committed by their employee during the course of employment.
4. **Occupiers' liability** – the liability of an occupier for injury/damage suffered due to disrepair on their premises.
5. **Product liability** – claims made in relation to defective products where the defects lead to losses/injuries.
6. **Nuisance** – allowing the occupiers of land to remedy activities which stop them from enjoying the land.
7. **Defamation** – enables victims to recover compensation for loss of reputation where a false statement has been made in relation to them.

Alternative to tort claims:

- * **Social security benefits** – where victims of an accident have no valid claim in tort or do not wish to bring a claim, they have to rely on benefits for financial support while recovering from their injuries.

- * **Insurance cover** – insurance may help victims in situations which are covered by their policies.

It is a criminal offence to not have insurance for drivers and for employers to be without insurance. – **Road Traffic Act 1988**
Employers' Liability (Compulsory Insurance Act 1969)

It is also common to take out household insurance to cover occupiers' liability claims.

- * **Compensation for victims of crime** – the Criminal Injuries Compensation Scheme provides compensation for injuries suffered as a result of violent crimes.

INTENTIONAL TORTS

Torts that arise from the intentional actions of the Defendant:

1. **Trespass to property** – Three separate torts:
 - i. Trespass to land
 - ii. Trespass to goods
 - iii. Conversion
2. **Trespass to the person** – Three separate torts:
 - i. Battery
 - ii. Assault
 - iii. False imprisonment

TRESPASS TO PROPERTY:

Trespass to land	Trespass to goods	Conversion
Unlawful direct interference with another's land and right to possess it.	The intentional and unlawful interference with another's lawful use or possession of goods (personal property).	The intentional dealing with goods which is inconsistent with the use and possession of another.

TRESPASS TO LAND:

Connection to occupiers' liability:

Trespass to land is commonly seen in **occupiers' liability** questions which you will read about in one of the later chapters. Establishing whether someone was a trespasser will be necessary for that.

Connection to land law:

Trespass to land is commonly **used in** relation to **boundary disputes** in land law. The parties usually also make a claim for the tort of trespass to land to seek a remedy in relation to the claims made for proprietary rights in land.

Definition:

Trespass to land = unlawful, unjustifiable, and direct **interference** with the Claimant's possession of land. – the Claimant has a proprietary right in land and therefore, a **right to keep people off the land**.

This tort includes the intentional entering or wrongfully remaining on someone else's land.

Elements:

Elements of trespass to land:

1. **Possession of the land** – the Claimant bringing an action for trespass must have exclusive possession of the land.
2. **Land includes** the usable space above and below and the surface of the land. – **a drone flying over the land is trespass, but not aircraft flying at reasonable height. An overhanging crane can constitute trespass.**
3. **Direct physical interference** with the land by person, the machines they control or animals. – **allowing the roots of your tree to extend under the land is indirect interference so not trespass.**
4. **Intent to enter the land/negligence as to animals/machines entering the land** – no need for intent to trespass, intent must be to simply enter the land. A person will also be liable if they negligently allow animals/machines in their control to enter the land.

Each day an object or person remains unlawfully on land, a fresh cause of action arises.

Even if a person has **permission** to be on the land because they have been invited to enter, they may **become a trespasser** if they enter for a **different purpose** than what the invitation entailed or if they enter a **different area** of the land where they have not been invited.

Example:

- * If they have been invited over for tea and they proceed to steal items from the house, they will be deemed to be trespassers as the purpose of the invitation was not stealing.
- * If someone is invited into the garden, they become trespasser if they enter the house. The permission was given to them to enter the garden only.

Direct interference:

The interference is **only actionable** if it is **direct**.

Examples of direct interference:

- * Taking possession of the land
- * Wrongfully entering or staying on the land
- * Placing anything on the land
- * Crossing the land or driving over the land
- * Allowing animals on the land.

Indirect interference is not actionable. – **a tree branch leaning over onto someone else's land is indirect interference.**

If smells/noises/vibrations enter your land from the neighbouring land, this will give rise to a nuisance claim, not trespass.

Defences:

Lawful entry:

If the Defendant's presence is lawful, there is no trespass.

Necessity:

If the Defendant can prove that it was necessary for them to enter the land to preserve life or property, there is no trespass.

TRESPASS TO GOODS:

Definition:

Trespass to goods = wrongful physical interference with goods that are in the possession of another.

Elements:

Trespass to chattels is actionable per se – actual damage is not required.

Defences:

Defending a person/property:

Goods are in real or imminent danger and interference is reasonable in the circumstances, and the Defendant considered that there was no other practical means of protecting the property.

Consent:

The Defendant cannot be held liable for trespass to goods if the Claimant had consented to the Defendant's interference.

Types of consent:

- * Express consent
- * Implied consent

In most cases, while there might not be express consent, there may be **consent implied from the conduct** of the owner of the goods or customs relating to the goods.

Consent is only valid if the owner of the goods had **capacity to consent** – look at mental and legal capacity.

Recovery of goods:

Recovery of goods by claimant removed by the Defendant due to unlawful distress.

CONVERSION:

Definition:

Conversion = the intentional dealing with goods which is seriously inconsistent with the use and possession or right to immediate possession of another person.

Elements:

1. Conversion is actionable per se.
2. Conversion is a strict liability tort, which does not require the claimant to show the Defendant had a wrong intention, the Defendant may assert as a defence that he acted honestly.
3. Only applies to corporeal personal property. – **does not apply to intangible property such as a contractual right, copyright or electronic documents.**
4. Possession or immediate right to possession required to have standing to sue for conversion. – **ownership is not a critical factor.**

Defences:

Co-ownership:

A co-owner has no right to bring action against another co-owner for interfering with his right of possession.

Cheques Act:

Cheques Act If cheque incorrectly paid into customer's account in good faith and without negligence, the bank has a defence.

Insolvency Act:

Insolvency Act A person who deals with the bankrupt's property when unaware of the bankruptcy is not liable.

Pawnbrokers:

Pawnbrokers are not liable for failing to confirm the pledged goods are being returned to the true owner.

Abandonment:

The test for purposes of ascertaining whether there has been abandonment is whether there has been both an intention to abandon and some physical act of relinquishment.

The finder must establish a reasonable entitlement to conclude that no one is interested in the goods and they can therefore be disposed of.

TRESPASS TO THE PERSON:

Battery	Assault	False imprisonment
The intentional and direct application of physical force to another.	An intentional act which causes another to apprehend the infliction of immediate, unlawful force.	Depriving another of freedom of movement, without a lawful justification for doing so.

BATTERY:

INTENTIONAL + DIRECT APPLICATION OF FORCE

Battery will likely be relevant in questions where a **doctor** or another medical professional does more to a person's body **than authorized**.

Definition:

Battery = the intentional and direct application of force to another person.

Elements:

1. Unlawful force against another person – **this includes unwanted physical contact of any kind that is not generally acceptable in the ordinary conduct of life.**
2. Which is direct and immediate physically.
3. The act must be intentional; however, the harm need not be.
AND
4. The Claimant is not required to demonstrate physical injury.

The contact need not be from one person to another, it can be through clothes or throwing something.

ASSAULT:

INTENTIONAL + APPREHENSION OF BATTERY

Definition:

Assault = an act which causes another person to apprehend the infliction of immediate, unlawful force on their person.

Elements:

1. The Defendant intends that Claimant apprehends the application of unlawful force on the Claimant.
2. The Defendant reasonably apprehends the direct and immediate application of unlawful force.
3. The Defendant has no lawful justification/excuse.
AND
4. No requirement of direct application of force – **words which instil a reasonable fear of unlawful force amount to assault.**

FALSE IMPRISONMENT:

INTENTIONAL + UNLAWFUL + DEPRIVATION OF LIBERTY

Definition:

False imprisonment = Depriving the Claimant of freedom of movement, without a lawful justification for doing so.

Elements:

- * The Defendant must intend to completely restrict Claimant's freedom of movement.
AND
- * The Defendant has no lawful justification/excuse.

Strict liability: if the Defendant intentionally performs an act that leads to the imprisonment of Claimant, then liability attaches even in circumstances if the Defendant did not know this act would result in false imprisonment.

Defences to trespass against the person:

Volenti non fit injuria:

In relation to sports: If the injuries suffered were not from the Claimant's participation in the sport but inadequate safety measures, that is a defence.

Self defence:

Self-defence is a valid defence to trespass against the person, assuming that it constituted the use of reasonable force which they honestly and reasonably believe is necessary to protect themselves or someone else, or property.

Consent:

- * Consent is not always a defence.
- * Consent must be valid to be taken into account.

Necessity:

- * The act must be necessary to avoid inevitable, irreparable evil.
- * No more may be done than is necessary to achieve purpose.
- * The harm inflicted must not be disproportionate to evil avoided.

NEGLIGENCE – DUTY OF CARE

INTRODUCTION:

The most common action in tort is negligence, where the Claimant aims to **recover compensation** for the **damage** caused to the Claimant if this damage was caused by negligence where a **duty of care** was owed to the Claimant and the Defendant has breached this duty.

Example:

Selling a faulty car which then bursts into flames. Even if no one is injured in the accident, the owner of the car and the passengers may be able to claim for psychiatric damage.

Negligence is essentially caused by **carelessness** and covers all sorts of issues from road traffic accidents to product liability and medical treatment.

Unlike in relation to contract law, **privity to the contract is not required**, so tort allows for third parties to a contract to make a claim. In fact, to make a tort claim, **no contract is required** at all.

Elements of negligence: *You need all of these to establish a claim*

1. **Duty of care** – the Defendant owed a duty of care to the Claimant.
2. **Breach of duty** – the Defendant breached their duty of care.
3. **Causation** – the Defendant's negligence was the cause of the Claimant's damage.
4. **Remoteness of damages** – the damage suffered is not too remote
- AND
5. **Lack of defences**

ESTABLISHING DUTY OF CARE:

Was the relationship between the Claimant and the Defendant such that the Defendant was obliged to take care for the Claimant's safety?

There are a number of **established duties of care**, where case law has already established that a duty is owed.

Where you find an established duty that corresponds to the duty in your scenario, rely on that established duty, as the courts will always aim to rely on existing cases and **develop the law by analogy**.

Established duties:

- * Drivers of motor vehicles owe a duty of care to pedestrians and other road users
- * Doctors owe a duty to their patients
- * Employers owe a duty to their employees
- * Manufacturers owe a duty to their consumers
- * Teachers owe a duty of care to students
- * Solicitors owe a duty of care to their clients

There is generally **less likely** for a duty of care to arise where psychiatric injuries have been caused by accidents, the work of the council and arrests.

Special relationships creating a duty of care	
Parent	Child
Teacher	Student
School	Student
Drivers	Road user
Doctors	Patient
Employer	Employee
Occupier	Visitor
Solicitor	Client
Accountant	Client
Ambulance	Patient

NOVEL DUTY SITUATIONS:

There are also situations where a duty of care has not previously been decided. In these cases, the court decide whether a duty of care is owed by using the **incremental approach**.

The courts will only imply a duty of care if: Caparo v Dickman

Important

1. The Claimant is a **foreseeable Claimant** – the Defendant's conduct must have caused a foreseeable risk of harm. Use the objective test.
2. There must be a **relationship of proximity** between the Defendant and the Claimant: the Claimant must be a person who is so closely and directly affected by my act that I ought reasonably to have them in contemplation as being so affected. This is called the '**Neighbour principle**'. – **Donoghue v Stevenson**
3. It is **fair, just and reasonable** to impose a remedy – applied by courts to look at broader implications of awarding a remedy.

The court will review each one of these three factors in turn to see if a

duty of care should be owed by the Defendant. If either one of these parts of the test is not satisfied, the courts will decide that the Defendant did not owe a duty of care in the circumstances.

The Claimant must be a foreseeable Claimant:

Palsgraf v Long Island Railroad A duty can only exist if it was reasonably foreseeable that damage or injury **would be caused to a particular person or a class of people**. There is no duty of care owed to the general public. – eg. it is not reasonably foreseeable that kicking someone in the foot would cause injury to someone outside of the immediate vicinity.

Example:

Craig is a railway worker, who is called to attend the tills urgently. He starts running towards the tills, and bumps into a passenger, Ismail, carrying a box. Unknown to Craig, the box contained fireworks, and it exploded immediately, hitting a wooden beam several feet away. This beam fell onto another passenger, Holly who she got injured as a result. The court would find that Craig could not have reasonably foreseen that bumping into Ismail would injure Holly, standing several feet away.

Langley v Dray Civilians failing to stop for police officers and engaging in a **police chase** will owe a duty of care **not to commit acts** which would reasonably create a risk or **cause harm to the police officer** chasing them. The police officer, other road users, pedestrians or the owners of nearby houses would all be foreseeable Claimants.

Haley v London Electricity Board Despite the need for foreseeability that a particular person would be injured, it is sufficient that the Claimant **falls within a particular class of people** who would be injured by the Defendant's acts or omissions. – eg. the need to take into account blind people where the population is large enough to warrant additional precautions.

Example 1:

A company was carrying out street repair works in London. During these repairs, the workmen would dig holes in the ground and put up signs to ensure that the people walking by would see not fall into these holes. Ronnie was blind, and did not see the sign, so he fell into one of the holes and suffered an injury.

The court would likely decide whether this was foreseeable based on the likelihood that a blind or partially sighted person would walk by. In London, there are a large number of blind people walking on the streets due to the high population numbers, so further precautions to guard against the risk of them falling in the holes should have been taken.

Example 2:

A British research team carries out research to prepare a report in relation to the cleanliness of the drinking water found in the local wells in Pakistan. They test for e-coli, bacteria and common viruses and produce a report.

Zakariya is taken to hospital and is told by the doctor that his symptoms appear to be caused by arsenic contamination in the local wells. Zakariya makes a claim for negligence against the research team, arguing that they should have tested the water for arsenic. The court will not decide for Zakariya in this case, as Zakariya has never read the report produced by the team and the research team cannot owe a duty to the whole population of Pakistan.

Proximity:

The **ordinary meaning** of "proximity" is closeness. In relation to the rules of duty of care, we examine closeness in terms of the parties' relationship. – This includes either **physical, circumstantial or causal closeness**.

Donoghue v Stevenson Use the **Neighbour Principle** to determine whether there has been proximity between the parties. There is a general duty that people must take reasonable care to **avoid acts or omissions** which can be **reasonably foreseen to likely cause injury to their neighbour**.

Neighbour = someone so **closely and directly affected** by the tortfeasor's acts/omissions that the tortfeasor ought reasonably to have them in contemplation when carrying out those relevant acts/omissions.

Muirhead v Industrial Tank Proximity does not mean that the Claimant and Defendant must **have known each other**.

Caparo v Dickman Proximity simply refers to situations where the Defendant **must have reasonably expected that their actions would cause damage to the Claimant**.

Example:

During a company acquisition, if the Buyer company is to rely on the audits of the Target company (the company to be purchased), the auditors will only owe a duty of care to the Target company and its shareholders, and not to potential buyers, unless the audit was specifically prepared for the purpose to be used in a company acquisition to value the Target company.

Fair, just and reasonable:

There is an overlap between proximity, reasonable foreseeability and fairness.

Where the court refers to fairness in relation to their refusal to allow for a duty of care to arise, this is the care there is an underlying **public policy** consideration to protect.

Even if the case fulfils the criteria of foreseeability and proximity, the court may still decide to reject the claim based on public policy.

McFarlane v Tayside Health Board Claimants cannot bring a claim for the costs of bringing up a child where the reason for getting pregnant was the **failure of a vasectomy** or similar procedure. – the court views the **birth of a healthy child** as a blessing, not something where compensation should be due.

West Bromwich Albion v Medhat El-Safty **Doctors are only responsible to their patients** and when advising them on procedures, they have to advise the patient as to what is best for them, rather than what is best for their professional career. – eg. **when deciding whether to advise on procedures that aid with longevity rather than short-term performance.**

Mitchell v Glasgow City Council Public policy generally **protects councils from liability for harm caused by third parties**. The court does not impose a duty on landlords and social workers to **warn affected tenants** that they have **scheduled a meeting** with tenants who have shown antisocial behaviour. Imposing such liability would deter landlords and social workers from dealing with antisocial tenants.

Example:

Remi had an antisocial neighbour, James, who would regularly send him death threats in the post. James lived in a council housing, so Remi let the council know of these threats and as a result, the council scheduled a meeting with James, where he was told that if the threats do not stop, he would be evicted. After the meeting, James broke into Remi's home and attacked him, leaving a scar on his face and multiple items in the home were broken. Remi's claim against the council, that they should have warned him of the meeting, would be rejected on public policy grounds.

Robinson v West Yorkshire Police (2014) Public policy generally **protects police officers from liability for harm caused to third parties**. This is because there is **public interest in arresting criminals**. The court is unlikely to impose a duty where the police officers were negligent in arresting someone and as a result, a third party is injured.

Example:

PC Harman and PC Goodfellow were arresting a dangerous criminal gang. The criminals resisted the arrest, and the police officers used reasonable force. Unfortunately, Ewan, who was a passer-by, was also arrested. During the arrest, Ewan resisted and was forced to the floor where he was handcuffed. When the police grappled him and handcuffed him, he kept trying to break free and broke his right arm. Later, he made a claim for negligence against the police officers, however, he was unsuccessful on grounds of public policy.

LIABILITY FOR OMISSIONS:

There is **no general duty to act** so there is no general liability for omissions. There is no duty to actively help. – **no duty to save someone in danger**.

Example:

Christian is on his way home from work when he sees an old woman being attacked by a fox. He looks at the woman and walks away. The woman is seriously injured and claims that Christian was a strong man with a backpack, he could have easily helped her when she was attacked. The court will likely decide that Christian's refusal to help will not make him liable, even if it would have been easy for him to help the woman.

However, there are certain situations where the court **imposes a duty** to actively act.

Exceptions:

- * If there is a **special relationship** between the parties – eg. **parent-child relationship, doctor and patient**.
- * If the Defendant has **control** over the victim – **Dorset Yacht** – eg. **a police officer will have control over a suspect in custody**.
- * If the **harm/danger is created by a third party** who is within the Defendant's control – eg. **a parent has control over their child so they may owe a duty of care not to allow their child to hurt other children**.
- * If a person has **created a risk or made an existing risk worse**, they have a duty to resolve the danger that has been created. – **Capital and Counties**
- * If a person **attempts to rescue** someone, they will have a duty **not to make the situation worse**. – **East Suffolk Rivers v Kent** – **this is the case even if the person does not complete the rescue**.
- * If one of the parties have **voluntarily assumed responsibility** over the other, a duty will be implied.

Control:

If the Defendant had a high degree of control over the victim, they will likely have a **duty to look after them**.

Reeves v Commissioner of Police for the Metropolis The police has a positive **duty to prevent suicide attempts** in prisons as the police will have control over the suspects in custody and inmates in prisons.

Voluntary assumption of responsibility:

There is generally **no duty to help** others under English law.

However, the duty to help will be implied if:

1. There is a contract between the parties implying such responsibility.
2. Responsibility arises due to the nature of the Defendant's job.
OR
3. One of the parties has assumed responsibility by conduct.

Voluntary assumption via contract:

There is a contract (which is not an employment contract) between the parties which implies that one of the parties will owe a duty of care towards certain classes of people. There may be a requirement to help while **on or off-duty**, depending on what the contract prescribes.

Example:

Nathan is a freelance swimming instructor at a local pool. He signed a contract with the pool management company, which includes a clause that he would provide life-saving assistances to swimmers as and when needed.

Voluntary assumption via the Defendant's job:

The Defendant has signed an employment contract which imposes a duty on the Defendant to help others **only while on duty**.

Example:

Sophia is an on-duty doctor at the A&E at a hospital. During her shift, a patient arrives at the emergency room with severe injuries. Sophia will be required to provide medical assistance by the nature of her job.

Voluntary assumption via conduct:

A person or organization may voluntarily assume responsibility by conduct if they start providing assistance when in need. From that point onwards, they are required to assist until the danger has passed.

Barrett v Ministry of Defence An authority or company will be held liable if someone is **ill, drunk or drugged** and **someone arrives to pick up them up**. At that stage, the authority or company will have voluntarily assumed responsibility for making sure that that person is taken care of while their illness or condition lasts. – eg. **this includes someone staying with them or taking them to the hospital if needed**.

If the Defendant has signed an employment contract which imposes a duty on the Defendant to help others while on duty, the Defendant is not required to help others off-duty. However, **if the Defendant starts providing assistance**, at that stage, there will be voluntary assumption of responsibility by conduct.

Example:

Sophia is a doctor at the A&E at a hospital. She is at a concert during her day off, when a woman collapses in front of her. She is not legally required to help, however, if she attends the woman, she will be required to assist using reasonable care and skill.

Creation of a risk:

If the Defendant themselves **created a dangerous situation or made an existing risk worse**, they will have a positive duty to extinguish the risk or danger.

Capital and Counties v Hampshire County Council The fire brigade owe a duty to the owners of the property not to make the fire worse. – eg. by switching off the internal sprinkler system.

Example:

A director hired a contractor, called Ashish to perform a safety assessment and general maintenance on the electrical systems of an office building. While performing his work, Ashish accidentally damages a gas pipe, causing a gas leak. If he, decides to leave the premises at this stage, anyone injured in the building will be able to make a negligence claim against him for damages.

By creating the risk, he had a positive duty to take steps to either attempt to repair the pipe himself (if he has the expertise) or immediately inform the building management or emergency services so that it can be addressed.

Creation of a risk, third party caused the harm:

If the Defendant **created a risk**, they may be liable if a **third party's actions** harm/injure the Claimant.

Haynes v Harwood If horses are left unattended in a busy area and a third party agitates the horses, the person leaving them unattended will be responsible for the damage caused by the horses. – **in this case, the horses could have become agitated without third party intervention.**

Topp v London Country Bus If a bus is left unattended on the street, with the keys in ignition, this will **not** make the person leaving it unattended responsible for the harm caused by a **third party's dangerous driving**. – **in this case, the active negligence of the third party was needed for the risk to materialise.**

Example:

Freddie's is smoking a cigarette while driving down the motorway. He accidentally drops his cigarette onto the floor, however, he continues driving, despite the carpet starting to burn, switching on the AC to stop the fire. He continues to drive until his trousers start burning, when he stops the car in the middle of the motorway to get out of the car. At this stage, the car is on fire.

Drivers are noticing the burning car and are slowing down as they approach it. Two teenagers pick up wooden sticks and use the fire to set them alight. They start throwing the sticks at cars. Lilly is in one of those cars, and one of the sticks hit her in the face, leaving a burn mark. In this case, both Freddie and the teenagers could be liable for causing the injury.

SCOPE OF DUTY:

When looking at duty of care, ensure that **the harm suffered is within the scope** of the Defendant's duty of care because if not, then the Defendant cannot be held liable, even if there was negligence.

Professional negligence:

South Australia Asset Management v York Montague A **negligent surveyor** who **overvalues property** which is to be offered as security for a loan **owes a duty to the lender**.

Always check the **reason why the professional was hired**. The breach must fall within extent of the work expected at the point of hiring the professional.

If a surveyor is hired to provide property valuation, they will only owe a duty of care in relation to the **valuation of the property** and will owe **no duty of care** in relation to the information they share **as to future trends**. Their duty of care will only extend to the advice for which they have been employed.

Example:

Margot is a surveyor, and she has been instructed by Universal Bank to carry out a valuation of the current value of Unit 1 492 Waldram Crescent. Unit 1 was a warehouse building and it was owned by a third party, Sustaina Build Limited. Sustaina applied for a loan from Universal Bank and unit 1 were to be used as the security for the loan.

Margot has visited the premises and prepared her valuation report, where she had stated that the estimated value of Unit 1 was £450,000 and that with the future trend, whereby property prices go up, Unit 1 could potentially be worth £600,000 within the next 5 years.

As a result of this advice, Universal Bank grants a loan of £600,000 to Sustaina for a term of 5 years. After a year, there is an economic crash, the value of Unit 1 plummets to £280,000, Sustaina goes insolvent and Universal Bank can only recover £280,000 by selling Unit 1. Universal Bank's claim for negligence would be limited to the value of Unit 1 at the time of the valuation report, as this is what Margot was contracted to do, and Margot would not be liable for a negligent advice as to the future market trends even if the bank relied on it.

Manchester Building Society v Grant Thornton (2021) A **negligent accountant** who **gives ineffective accounting and financial advice** will be held liable for all the advice and information that was given to the client for the **purpose of the duty** (to give financial advice). This is judged by the standard of the **reasonable person** (objective test).

While accountants and financial advisors are more likely to be **hired to provide financial strategies** for the future, you must always look at the reason why the professional was hired. If they have been hired to provide financial strategies, then they will owe a duty of care both in relation to future predictions.

While the financial advisor cannot be responsible for unforeseen future events, they **must use the correct calculations**, taking into account all the vital aspects of the company.

Example:

Clear View Consulting Ltd is a company of accountants and financial advisors. Grandiose Ltd is a company which engages Clear View to provide financial and accounting advice.

Clear View, led by its senior accountant, John, advises Grandiose to enter into an interest rate swap arrangement to protect Grandiose against potential future interest rate increases and instability. John assures Grandiose that the interest rate swap is a sound financial decision, providing detailed projections and assurances. Relying on this advice, Grandiose enters into the agreement.

A year later, the swap results in an £1,000,000 loss due to unforeseen interest rate movements. Grandiose discovers that John had failed to consider critical aspects of the company's financial position and as a result, the plan was not suitable for Grandiose.

Grandiose will have a claim for negligence in this case. If the case went to trial, the court would evaluate whether John, failed to meet the standard of care expected of a reasonable accountant in providing financial advice. The court would assess whether John breached this duty by failing to consider critical financial aspects. Given that the advice led to significant financial losses, it is likely that this would be considered a breach of duty.

PUBLIC BODIES:

The police:

Duty of care in relation to positive acts:

Robinson (2018) If a police officer has been negligent and this negligence **creates a positive risk of injury** where there was a relationship of proximity, the police officer will be liable.

Example:

Two police officers are chasing a suspected thief in a busy urban area with a lot of pedestrians around. During the chase, an officer attempts to tackle the suspect but does so recklessly, and he knocks over a pedestrian, causing them serious injury. In this case, the pedestrian might have a claim against the police for negligence.

Langley v Dray **Civilians** failing to stop for police officers and engaging in a **police chase** will owe a duty of care **not to commit acts** which would reasonably **cause harm to the police officer** chasing them.

Example:

Beatrice is driving a stolen car, when a police officer asks her to stop the car to carry out a stop and search. Instead of stopping the vehicle, Beatrice drives off, and police officer started chasing her. Knowing this, Beatrice decides to speed up and the police officer crashes through the fence of a house next to the road.

Even though, it was the police officers' act of chasing Beatrice that caused the accident, both the homeowner and the police officer will have a case for negligence against Beatrice, as she owed a duty of care to the police officer and other road users and had a duty not to speed up, creating a risk of injury.

Duty of care in relation to omissions:

Michael v Chief Constable of South Wales Police The police will owe a duty of care to a person if they have **assumed responsibility** for that person's safety and security or if the police has **created the danger** themselves.

R v Dytham If a police officer is on duty, they will be liable for omissions if they **fail to protect members of the public**.

Example:

A police officer on duty wearing a uniform should help an old lady being violently assaulted, even if the police officer is on break as they have a duty to protect members of the public.

Fire service:

Hampshire If the fire service **attends a fire**, they will have a duty not to make the situation worse. – eg. by turning the sprinkler system off or spreading the fire.

If the fire service **creates a danger**, or makes it worse it will have a duty to take **positive steps to fight that danger**, as much as reasonable.

NEGLIGENCE – BREACH OF DUTY

STANDARD OF CARE AND BREACH:

It is not sufficient to simply establish that a duty of care existed in the circumstances, we also need to **identify** whether there has been a **breach of that duty**. This is the care if the Defendant fails to take reasonable care to the standard expected of them.

What **standard of care** was the Defendant obliged to hold themselves to that they breached?

Reasonable man test:

Blyth v Birmingham Waterworks The standard of care expected of the Defendant is that of the ordinary **reasonable person** in the Defendant's position. – the Defendant will have breached their duty if the court finds that a reasonable person would not have fallen below the standard of care.

The reasonable man is also known as the man on the Clapham omnibus.

Nettleship v Weston New drivers will be held to the standard of a reasonable person without the court looking at their characteristics. This includes inexperience, which will be ignored. – **the court will hold the new driver to the standard expected of a reasonably competent driver.**

In assessing whether the care used was reasonable, consider:

The **likelihood of harm** arising and the **seriousness** of that potential harm. If there is a high chance of potential harm/serious harm in any given situation, greater caution should be exercised.

When the court decides on reasonability, they will look at factors:

- The court will take into account all the circumstances of the case.
- The Defendant's position – eg. if they were part of a particular profession or had some form of expert knowledge, they will be held to a higher standard.
- Foreseeability of harm – if the harm is foreseeable, then more precaution must be taken to avoid the harm.
- The seriousness of any potential harm – the greater the harm, the greater the precautions that will need to be taken.
- Magnitude of risk
- Cost and practicality in overcoming any risk – courts expect people to take only reasonable precautions in guarding against harm to other.
- Purpose and utility of the Defendant's activity – emergencies or if it is taken for the benefit of society.
- Common practice at the time
- State of knowledge at the time

PROFESSIONALS: *HIGHER STANDARD*

Professionals will be held to a higher standard, **the standard expected of a reasonable member of that profession**. – eg. a doctor will be held to the standard of a reasonably competent doctor.

Bolam Bolam test: Professionals will be judged by the standard of ordinary skilled man exercising and/or professing to have that **special skill**. – This is the case even if they do not in fact have the skill they say they have.

Bolitho The court will not find a doctor not liable simply because **other doctors testify that they agree** with what that particular doctor did in that specific situation.

Wells v Cooper The fact that the professional is **inexperienced**, incompetent or a junior member of the team **do not lower the standard** expected of them. If a person decides to carry out an activity they do not have the competence to do, this will be a sign of negligence.

The Wells v Cooper standard applies to:

- * **Junior doctors** – a junior doctor will have to meet the standard of a reasonably competent doctor in their department. – **Wilshire v Essex Area Health Authority**
- * **Learner drivers** – learner drivers should meet the standard of a competent and experienced driver. – **Nettleship v Weston**

Additional duties for doctors: Montgomery

- * Doctors **must warn** patients of material risks of treatment.
- * The professional must have taken reasonable care to **explain any materials risks** involved in any particular choice, and any reasonable alternatives. What is material in any given case will depend on the patient.
- * The doctors **cannot** argue that a failure to warn is based on a **responsible body of professional opinion**.

CHILDREN: *LOWER STANDARD*

Mullin v Richards Children are held to a lower standard, which will be the **standard expected of an ordinary child of the same age**.

Example:

A 6-year old is not found to be negligent for not understanding that certain situations can be dangerous such as walking across a busy road without looking both ways.

Mullin v Richards 15-year-old girls may not foresee that sword-fights with plastic rulers pose a risk of injury, if they have not been warned by the school.

Orchard v Lee High degree of carelessness is acceptable in relation to children and will generally not amount to negligence.

Exception:

If a child carries out acts typically carried out by adults, they will be held to the standard of a reasonable adult. – eg. **driving a car, smoking a cigarette**.

ILLNESS: *NO CHANGE IN STANDARDS*

Anyone who is ill while carrying out certain activities, will be held to the **same standard as a healthy person**.

Roberts v Ramsbottom Someone who suffered a stroke while driving, causing an accident was **held to the standard expected of a reasonably competent driver**. The reason for this decision was that the driver could make an insurance claim to cover the compensation.

PROVING THE BREACH:

Proving that there has been a breach of duty can sometimes be difficult.

Common types of evidence used to prove that there has been a breach:

- Witness evidence
- The doctrine of "Res Ipsa Loquitur"

Witness evidence:

In order to prove the breach, it is important to find witnesses to give evidence.

This should include either **witnesses of fact** to describe the events or **expert witnesses** to describe the correct procedures that should have been used.

Res Ipsa loquitur:

Res Ipsa loquitur = the thing speaks for itself.

This doctrine is used in situations where there is **no evidence**, but the circumstances are such, that **negligence is obvious**.

Elements:

- The Defendant must be shown to have been in control of the thing which caused the injury to the Claimant.
- Accident must be of such a nature that it would not have occurred in the ordinary course of events without negligence.
AND
- There is no explanation as to how the accident occurred.

NEGLIGENCE – CAUSATION AND REMOTENESS

CAUSATION – INTRODUCTION:

In addition to establishing a duty of care and a breach of duty, a Claimant must also establish causation and remoteness.

Did the Defendant's breach of duty **cause** the harm the Claimant suffered? The Defendant will not be liable unless their negligence has caused the Claimant's injury/loss.

Consider causation in two stages:

1. Causation in fact – Was the Claimant's loss/injury caused by the negligence of the Defendant?
AND
2. Causation in law – Was the Claimant's loss/injury too remote?

Claimants **must prove** that their injuries/losses were **caused both in fact and in law** (so ensure that you address both stages of the test).

Burden of proof:

The Claimant has the **burden of proof** to show that, on the **balance of probabilities**, the damage/injury suffered by the Claimant has been caused by the Defendant's negligent actions/omissions.

CAUSATION IN FACT:

The General rule – the "But for" test:

Claimant must show that their loss was caused by the Defendant's negligence. – **But for the Defendant's breach, the Claimant would not have suffered harm.** This is called the "But for" test, and this is the test to use where the injury had **one single cause**.

If the harm would have occurred even if the Defendant did **not** breach their duty, then the breach will not have caused the harm suffered and the Claimant cannot have a claim for negligence.

Example:

Beryl goes to the A&E, complaining of a headache. The doctor on duty examines her and finds that the headache is likely caused by lack of sleep. Beryl is sent home, where she dies of a brain haemorrhage a few hours later.

Even if there is a finding that the doctor was negligent when examining Beryl, if Beryl would have died even after a proper examination, then the doctor will not have caused her death and Beryl's estate will not have a claim against the doctor.

Successive injuries:

However, if the injury/loss was caused as a **result of multiple causes**, identify whether the causes resulted in successive injuries or whether there has only been one single injury suffered by the Claimant as a result of the multiple causes.

Successive injuries = two or more causes that took place one after another, causing **different injuries**.

Performance Cars v Abraham If there are successive injuries, use expert evidence to determine the cause of each injury. In this case, the Claimant may **recover from each Defendant for each injury** caused by them.

Example:

Jacob has been involved in a car accident where a negligent driver has hit his car from the back, causing a broken leg. A few seconds later, a negligent motorbike rider crashes into Jacob's car from the right-hand side, resulting in a broken rib. Jacob will likely have a claim for both injuries. The negligent driver will be liable for the broken leg and the negligent motorbike rider will be liable for the broken rib.

Concurrent causes, indivisible injuries:

If the Claimant has suffered an **injury or multiple injuries** which could have resulted from a **number of different causes acting together** to cause the injury/injuries, then you need to look at the following rules.

Bonnington Castings v Wardlaw In this case, the Claimant need only show that the Defendant's breach has **materially contributed** to the Claimant's harm. – this means a contribution of **more than 50%**.

Sienkiewicz v Greif If the acts of the Defendant have **materially increased the risk of harm**, then the Defendant should be held liable for the harm, even if the exact contribution of their negligence to the

causation of the harm cannot be quantified.

Example:

Omonike has worked for a company where she had been exposed to small amounts to asbestos as a result of the company's negligence. She has later developed mesothelioma, a disease that could be potentially caused by asbestos among other causes.

As the company's negligence has materially increased the risk of Omonike contracting mesothelioma, the court would likely find the company liable.

Divisible injuries:

Holtby v Brigham and Cowan Ltd If the Claimant has suffered an **injury or multiple injuries in one accident** which resulted from **multiple causes**, however, the cause of the **injury is divisible** (clearly identifiable), the court will typically provide that each Defendant is **liable in accordance with the proportion of harm each of them caused**. – eg. if one of them caused 30%, and the other 70%.

Indivisible injuries:

If two or more Defendants breached a duty which leads to an injury which **cannot be attributed to either one of the Defendants alone**, meaning that the injury or injuries are **indivisible**, the Claimant can **recover full compensation from either Defendants**.

This is because, without this limitation, there would be a risk that the Claimant were to recover the same damages twice or more.

Example:

If Kyle was hit by a bus and then also a car, thus suffering a broken leg, with no way to tell which one caused the injury even by using expert evidence, the court will likely decide that the injury was caused by both collisions, rather than one or the other.

Civil Liability (Contribution) Act 1978 The court will identify what **percentage each Defendant should pay** based on how they should share responsibility for the Claimant's injuries/losses.

If one of the Defendants can prove that they have paid more than their share of the fault, they will be able to seek **contribution** from the other Defendant.

CAUSATION IN LAW:

The Claimant must show that there was **no new intervening act** (novus actus interveniens) **breaking the chain of causation**.

If there is a **new, intervening act**, caused by a third party, this may break the chain of causation starting from the Defendant's breach to the Claimant's harm.



Where this is the case, **the Defendant will not be liable** for the harm suffered by the Claimant.

The new intervening act will break the chain if:

- * The intervening act was **unforeseeable**.
- * The **Claimant's own actions** may break the chain of causation if they acted **unreasonably**.
- * If the intervening act is committed by a **third party**, it must have been either **intentional or reckless**. – this new act must have been independent of the negligence of the Defendant.
- * A doctor's **gross negligence** when treating the Claimant will have been unforeseeable. – However, ordinary negligence will have been foreseeable.
- * An **act of nature** will break the chain of causation if it causes the damage/injury in itself.

The Claimant's own actions:

The Claimant's own actions will only break the chain of causation if the Claimant acted in a way which was **so reckless and unreasonable** that their injury can **no longer be attributed** to the acts/omissions of the Defendant.

In this case, the court will decide that the Claimant will be responsible for their own injuries.

The new intervening act does not break the chain of causation if:

- * The negligence of the third party was **foreseeable**. – **Rouse v Squires**

- * The intervening act took place as an instinctive reaction to what was happening at the time. – **Scott v Shepherd**

REMOTENESS OF DAMAGE:

Even if all the other elements are satisfied, the Defendant may escape liability if **the damage was too remote a consequence** of the breach of duty. – if this is the case, the damage will be **unrecoverable**.

Test for remoteness:

Wagon Mound The damage must have been **reasonably foreseeable** by the Defendant. If the damage was not reasonably foreseeable, it will be deemed to be too remote.

Example:

AB Shipping Ltd is a company repairing ships. One day, they are called out to fix the side of an oil tanker which is in the middle of delivering large quantities of oil. The workers replace a part of the ship to ensure that the side is stronger and more durable to enable the ship to complete its voyage safely. Unfortunately, one of the parts have not been properly attached during the repairs.

As the ship leaves the harbour, the oil starts leaking, and it drifts to an area of the harbour where workmen from another company are welding metal. A spark from the welding catches fire from the oil and the fire spreads to the wharf causing substantial damage. In this case, AB Shipping cannot be held responsible for the damage, as it was not reasonably foreseeable when the negligence occurred and therefore, would be too remote.

Armstead v Royal & Sun Alliance (2024) The **burden of proof** that one/ more of the losses are too remote to be recovered is **on the Defendant**. This means the Defendant must prove that the loss or type of loss was **not reasonably foreseeable**.

This is the general rule that applies to all cases apart from a few exceptions, listed below.

Exceptions:

1. The Egg-shell skull rule
2. The Similar in type rule
3. Loss of a chance

The Egg-shell skull rule:

Defendants will take the victim as they find them, even if the victim has any weaknesses or ailments. – if the victim drinks a drink which contains e-coli, and the victim has an underlying condition, killing them, the manufacturer will be liable for their death, even if that was not intended.

Smith v Leech Brain Defendants will be liable, as long as the type of harm and its manner was reasonably foreseeable, even if the **extent of the harm was not foreseeable**. – even if they intend a lesser harm, if the harm ends up being worse than expected, they will still be liable.

The Similar in type rule:

Hughes v Lord Advocate If the Claimant suffers the **type of harm** which would be reasonably foreseeable, however the specific manner in which it occurs or the actual damage suffered is unforeseeable, it will not be too remote.

Example:

Tom is an electrician who leaves an open manhole covered with a tent and lit by warning lamps at a construction site. Sarah, a pedestrian, decides to explore the tent out of curiosity. As she stands next to the manhole, and one of the lamps is knocked over by a gust of wind, causing a small explosion. Sarah is thrown into the manhole and suffers severe burns and a broken leg from the fall.

The type of harm (injury from falling into the manhole) is reasonably foreseeable due to the open manhole. However, the exact way in which the injury occurred (the explosion) was unforeseeable. However, Tom can still be held liable because the type of harm was foreseeable.

Loss of a chance:

Stovold v Barlows Where the loss of the Claimant is a loss of a chance, the Claimant must prove that there was a **real/substantial chance**, rather than mere speculation.

This exception relates to the acts of a third party, where the Claimant themselves had no substantial control over that third party's actions.

Example:

Gabriella purchases a new fan, which explodes when she turns it on. She is now in hospital, and it appears that she will be unable to work for at least 8 months in her current role as a marketing manager. She decides to make a claim against the manufacturer of the fan for negligence and in addition to her usual salary covering the 8 months loss of work, she also claims for her loss of bonus.

This may not be too remote if she had a real/substantial chance of receiving this bonus. She will need to show evidence of the previous performances bonuses she has received, and positive performance reviews and internal communications indicating that she would be a strong contender for a bonus.

NEGLIGENCE – DEFENCES

INTRODUCTION:

The Defendant will seek to establish a defence to the claim as having a valid defence may reduce/extinguish their liability to pay compensation.

While the Claimant has the burden of proof, showing that the Defendant has been negligent, the **Defendant has the burden of proof** showing that on the balance of probabilities, one or more of the following defences apply.

Key defences that the Defendant may rely on:

1. The Claimant was **contributorily negligent**
2. The Claimant has **voluntarily assumed a risk**
3. The Defendant has validly **excluded/limited their liability**
4. The Claimant was undertaking a **criminal activity** when they were injured
5. The damage was caused as a result of a **necessity**.
6. The negligent act was making a negligent misstatement and the Defendant had simply made a **mistake** and had an honest belief in the truth of their statement.

CONTRIBUTORY NEGLIGENCE:

The Defendant may use the defence of contributory negligence where **the Claimant or a third party was, in part, responsible for the harm** they suffered, **due to their own negligence**. – **s.1 Law Reform (Contributory Negligence) Act 1945**

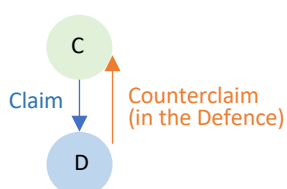
A finding of contributory negligence will result in a **reduction of damages** payable by the Defendant.

This is the most common defence to negligence. When there is an accident, the Claimant themselves will likely have been negligent in some way, therefore, contributing to the accident.

Contributory negligence is a **partial defence** and will not extinguish liability completely but will reduce the damages payable by the Defendant. Contribution **can never** pay for 100% of the losses.

There are two ways in which contributory negligence can be claimed: either against the Claimant themselves or a third party.

Contributory negligence claims against the Claimant:



If the Claimant was themselves negligent, thus contributing to their own losses, the Defendant can make a counterclaim against them in their defence.

The Defendant must show that:

1. The Claimant did not take reasonable care.
- AND
2. This has contributed to the losses they have suffered.

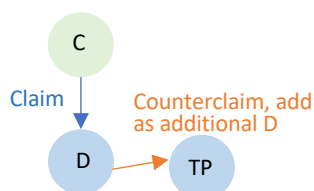
The Defendant **need not show** that the Claimant owed them a **duty of care** in the circumstances.

Example:

Samuel ordered 120 sets of curtains from Dreamy Curtains Ltd for a hotel renovation project. The curtains, which were custom made, turned out to be the wrong colour, instead of teal, they were cornflower blue. The contract did not specify the colour.

Samuel made a claim against Dreamy Curtains. Dreamy Curtains, in their defence, made a counterclaim against Samuel for contributory negligence, claiming that he selected the wrong colour, royal blue on the website when he made the order. While the colour the curtains turned out to be was not royal blue, cornflower blue is closer to royal blue than teal on the colour wheel.

Contributory negligence claims against a third party:



If a third party was negligent, they, can be added to the claim as a joint tortfeasor, as an additional Defendant to the claim.

If you struggle to identify whether the counterclaim should be made against the Claimant or a third party, ask, who was the one who suffered a loss and will thus be making the claim?

Example:

Samuel ordered 120 sets of curtains from Dreamy Curtains Ltd for a hotel renovation project. The curtains, which were custom made, turned out to be the wrong colour, instead of teal, they were cornflower blue. The contract did not specify the colour.

Samuel made a claim against Dreamy Curtains. Dreamy Curtains, in their defence, made a counterclaim against another company, Luscious Fabrics Ltd, as they were the ones who sourced the fabric for the curtains.

Establishing the standard of care:

While the Defendant need to establish that the Claimant or third party owed them a duty of care, they must establish what the **standard of care** would have been reasonably expected of the Claimant/third party to identify whether had been negligent.

When doing this, the court will always look at **what was reasonable** in the circumstances.

Children:

Gough v Thorne Children could also be potentially held liable for contributory negligence if they have **reached the age** where the court believes it would have been reasonable of them to **take precautions**.

Employees:

In relation to employers' liability, employees may also be found to be contributorily negligent if they have been negligent in their own right, contributing to their own injuries.

In determining the standard expected of employees, the court will take into account all the circumstances of the case.

Rescuers:

Baker In some cases, the Claimant will claim that both the original tortfeasor and their rescuer was negligent, if the rescuer's negligence contributed to their injuries. In this case, the standard expected of rescuers is the **standard of a reasonable rescuer**.

Heat of the moment decisions:

Where the Defendant's negligence causes an emergency situation, and the Claimant finds themselves in an imminent danger as a result, the court will **lower the standard expected of Claimants**, who may be making decisions in the heat of the moment.

VOLUNTARY ASSUMPTION OF RISK (VOLENTI NON FIT INJURIA):

Where the Claimant had full **knowledge of the risk** and they freely and voluntarily **consented to it**, the Defendant will **not** be held liable.

It is not sufficient to show that the Claimant knew of the risk, the Claimant must actually consent to it.

Example 1:

In the medical context, patient must be made aware of material risks involved in their surgeries. If Adam is to have a surgery to his eustachian tube, he must be informed of all the risks involved and must sign a consent form before the surgery could be performed. In this case, if one of the risks materialises, Adam will have no claim against the surgeon.

Example 2:

Dom broke his leg while playing in rugby match. He believes that this was caused by a negligent tackle by the opposing team. If he were to make a claim, the court would likely decide that Dom voluntarily assumed risk in the ordinary course of the game by participating.

The test for consent to apply – the Defendant must show that:

1. The Claimant was **fully aware** of the nature and extent of the risk involved in the activities. – **Dann**
 - AND
 2. The Claimant has **freely consented** to the risk either expressly (by making a statement or signing a consent form) or impliedly (by way of the actions).
- Consent is not freely given if there is a relationship of **dominance** between the parties. – **such as employer-employee relationship or the relationship between married couples.**

Smith Baker In cases where there is unequal power in the relationship, the courts are not likely to find consent.

This is a **complete defence** to negligence.

However, the court will rarely find that this defence applies in practice. The court is more likely to find contributory negligence, where the Claimant failed to take reasonable care of their own safety.

Illegal activities:

The court will **not accept** the argument of voluntary assumption of a risk or even contributory negligence where the Defendant was engaging in a **clearly illegal activity**.

Example 1:

Two men are at the pub, drinking. One of them offers to drive the other home, the other man accepts and gets in the car with him, despite knowing that the man was drunk. On the way home, the drunk driver crashes the car into a tree, causing serious injuries to the other man.

The injured man can now make a claim for negligence against the drunk driver, and the drunk driver cannot rely on the argument that the other man consented or was contributorily negligent for getting in the car.

Example 2:

A group of chemistry students decide to create and detonate homemade fireworks without a permit. During the setup process, one of the students accidentally detonates one of the fireworks early, injuring the students standing nearby.

The students standing nearby may make a claim against the students setting up the fireworks. While they may have consented to the risk by watching, this will not mitigate the student's liability.

EXCLUSION OF LIABILITY:

If there is a contractual **exclusion of liability for death or personal injury** arising from negligence, this will not be enforced by the court and negligence claim is still valid.

Other exclusions of liability for negligence will be enforced only if they are **reasonable**.

In order to establish whether the clause was reasonable, use:

- The reasonableness test under the **Unfair Contract Terms Act 1977** (for business-to-business transactions).
- The fairness test in the **Consumer Rights Act 2015** (for business-to-consumer transactions).

CRIMINAL ACTIVITY (ILLEGALITY):

If a Defendant negligently injures a Claimant whilst that Claimant was **undertaking criminal activity or immoral conduct**, this will serve as a **complete defence**.

This defence is also called "Illegality" or "Ex turpi causa non oritur", meaning that no claim may arise from an illegal/disgraceful cause.

Ashton If the Claimant and Defendant were both parties to a burglary, and the Claimant is injured due to the **negligent driving** of the Defendant of the **getaway car** while driving away from the crime scene, the Claimant will not have the right to make a claim for negligence.

Potential criminal activities that may apply in these scenarios:

1. Stealing a car together and due to the Defendant's negligent driving, the Claimant is injured in an accident.
2. Street racing
3. Drink driving
4. Theft
5. Burglary

Example:

Gabriel and Harry decide to engage in street racing at night. Gabriel drives too fast and loses control of the vehicle, crashing into the Harry, driving his car. Gabriel's vehicle also crashes into a car parked on a driveway. Unbeknownst to them, a woman was sleeping in the car, and she is now seriously injured.

In this case, Harry cannot make a claim against Gabriel as he was also part of the criminal activity (street racing). However, the injured woman may potentially have a claim against Gabriel.

NECESSITY:

There might be emergency situations, where a reasonable person might decide that **causing some damage** is a worthy sacrifice in order to **prevent a much greater harm**.

Cope However, these situations must be of **sufficient scale** in comparison to the harm caused by the Defendant. The more serious the emergency situation, and the smaller the harm caused, the more likely that the Defendant's actions will be **justified by the circumstances**.

If the argument is accepted by the court, it is a **complete defence** to negligence.

Medical cases:

Re A (Children) (Conjoined Twins: Surgical Separation) Use the following test in relation to the application of necessity in the medical context:

1. The act which has caused the harm was **necessary to avoid** an inevitable and irreparable evil.
2. There was **no more done than what was reasonably necessary** to achieve this purpose.
- AND
3. The harm caused **must not be disproportionate** to the evil avoided.

Example:

Elizabeth is a surgeon, operating on Herman, when his heart stops on the operative table. The medical team manages to resuscitate him, leaving a number of broken ribs behind, which would potentially take an additional 4 months to heal. When Herman wakes up, and decides to make a claim, he will argue that he has never signed a consent form to be resuscitated. However, as he would have died without the resuscitation, the court would likely accept the defence of necessity in this case.

MISTAKE:

This defence can only apply to **negligent misstatements** where the Defendant **truly believed** that the statement they have made was correct and has made an **honest mistake**.

However, mistake does not apply to ordinary negligence cases.

ROAD TRAFFIC ACCIDENT CLAIMS

COMMON LAW DUTY OF CARE:

Motorist owe a common law duty of care to other road users/ pedestrians/those occupying property adjacent to the highway to drive or conduct themselves with reasonable care and skill expected of a reasonably competent driver.

This duty includes: Highway Code

1. The duty to drive with reasonable care and attention. – **Rule 144**
2. The duty not to drive under the influence of alcohol – **Rule 95**
3. The duty to signal to warn other users of the intention to stop – **Rule 103**
4. The duty to obey traffic lights signals and they must not proceed through the green lights if there is obvious danger. – **Rule 109**
5. The duty not to exceed the speed limit. – **Rule 124**
6. The duty to be considerate and to not become agitated while driving. – **Rule 147**
7. The duty to check surroundings and blind spot before moving off. – **Rule 159**
8. The duty not to overtake a vehicle approaching a crossing. – **Rule 191**

Breach of the highway code is not punishable, but it helps to **prove a breach of duty** which is necessary to make a claim in tort.

BREACH OF DUTY:

Rear end shunt cases:

Go through this section if the accident was caused by a rear end shunt.

If a driver drives into the rear of another, there is a strong inference of negligence and the following vehicle will be held liable.

Identify the breach.

The rear end of the C's car was hit by D's car.

Identify what D should have done to comply with their duty:

- * Keeping adequate distance after C's car and
- * Driving within the speed limit so that they can stop on time.
- * Not diverting their attention by using mobile phone
- * Not driving under the influence of alcohol

Defences and Contributory negligence:

1. If the accident is wholly caused by the abrupt and immediate halt of a vehicle in front – this is not foreseeable.
2. If the front car performs an emergency stop but both parties were negligent, a finding of contributory negligence may be made reducing the damages payable by D.
3. If a car was overtaking another vehicle and suddenly cut in front of them, the front car will be liable. – **Luffman v Coshall**

Collision:

Go through this section if the injury was due to a collision in the centre of the road.

Identify the breach.

D's car colliding with C's car in the centre of the road.

Liability:

If there is a collision in the centre of the road and there is no other evidence, both will be liable 50-50%.

Defences and Contributory negligence:

If there is evidence to suggest negligence such as losing control of the vehicle or negligent driving, the court will follow rely on that evidence to find one party liable.

Traffic Signal cases:

Go through this section if the collision was immediately after passing the traffic lights.

Identify the breach.

D proceeded through the red light or D proceeded through the green light when there was obvious danger in proceeding.

Identify what D should have done to comply with their duty:

- * Obeying the traffic lights
- * Driving within the speed limits
- * Paying undivided attention to the road to notice any dangers

Defences and Contributory negligence:

In a case where a taxi proceeded through a green light and a cyclist went through a red light collided, liability was split 80/20 in the taxi's favour. This was because although the taxi driver passed through the green light, collision could have been avoided if they paid attention.

Road rage cases:

Go through this section if the accident was due to road rage.

Identify the breach.

Drivers caused an accident due to their road rage.

Identify what D should have done to comply with their duty.

Keeping calm and considerate at all times as to not become agitated.

Defences and Contributory negligence:

In a case where more than one drivers are at fault, the driver that demonstrated road rage will likely have an increased percentage towards damages.

Influence of alcohol:

Go through this section if the accident was caused by driving under the influence of alcohol.

Identify the breach.

Driving under the influence of alcohol.

Identify what D should have done to comply with their duty.

Not to driver under the influence of alcohol and drive with reasonable care and attention.

CONTRIBUTORY NEGLIGENCE:

Duty to wear a seat belt:

Drivers:

Failure to wear a seatbelt may constitute to contributory negligence:

Froom v Butcher

- * if injuries would have been prevented by wearing the seatbelt – damages should be reduced by 25%.
- * if medical evidence only shows that not wearing a seatbelt made a considerable difference – damages should be reduced by 15%.

Passengers:

The duty to wear a seatbelt extends to passengers. The percentage awarded will follow the rule in Froom v Butcher.

Emergency services:

If road users fail to react to the signs of an approaching emergency vehicle (sirens/flashing light) and the emergency vehicle causes an accident, the driver of the emergency vehicle will not be liable.

Pedestrians:

Drivers have a duty to anticipate dangers on the road and should drive **more carefully** if they see that a dangerous situation could potentially arise.

This includes:

- * A pedestrian walking in the centre of the road. – If the pedestrian is struck, the pedestrian will likely be found 40% contributory negligent.
- * A child is walking on the side of the road. – The child might suddenly run across the road.

Drivers will not be held liable if they could **not have anticipated the pedestrian's actions**. – eg. jumping in front of the car. However, if a child jumps in front of the car, then it is arguably something the driver could have anticipated.

But pedestrians will not be held more responsible than the driver unless they suddenly moved into the vehicle's path.

Examples of contributory negligence:

- * A pedestrian walking in the centre of the road.
- * A parent not holding their child's hand next to a busy road will be held to be negligent.

There can be no contributory negligence:

- * A 6-year-old child walking on the side of the road, suddenly running across the street is unlikely to be found negligent. Children at that age cannot appreciate the danger of running across the street on a busy road. However, 10-year-olds are more likely to be found negligent when running across the street without looking both ways first.

CAUSATION:

The onus is on the Claimant to prove that their injuries were caused by the breach of duty which is not too remote. C must show that but for D's breach, the injuries would not have occurred.

D can dispute causation by:

1. Arguing that they did not cause the accident or
2. Arguing contributory negligence.

s.1 Law Reform (Contributory Negligence) Act 1945 If anyone who suffers an injury partly due to his own fault, damages will be reduced to such an extent as court thinks just and equitable.

VICARIOUS LIABILITY

Vicarious liability = the Employer is liable for the torts committed by employee, even if employer has not been guilty of any personal negligence.

Where vicarious liability is owed, the Claimant may make a **claim against** both the **tortfeasor** (the person who committed the tort) **and their Employer**. – eg. if you are injured due to the negligence of a driver, then you can sue both the driver and their employer if they were employed and hit you during work hours.

REQUIREMENTS:

Requirements for vicarious liability to apply:

- The tortfeasor must be **an employee**
- Act must have been **closely connected** to the task the employee was employed to carry out.
AND
- The tort must have been committed **in the course of employment**.

The duty may arise for an employee's tort committed **against customers, other employees and any third parties** even if they had no connection to the employer's business.

Who is an employee?

Employee = a person who undertakes to do work for another under a contract of service.

Independent contractor = a person who undertakes to do work for another under a contract for services.

Barclays Bank plc (2020) The employer will not generally be liable for any torts committed by their independent contractors. – However, if the breach of duty was in relation to a duty owed by the employer which was simply delegated to the independent contractor, then the employer remains liable.

Tests to establish whether the Defendant was an employee:

- * Control test
- * Integration test
- * Mutuality of obligations test
- * Other factors

Control Test: Yewens v Noakes

Court considers the degree of control exercised by the employer over the work.

More likely to be an employee if:

The Employer has control over how, where and when work is carried out.

Integration test: Stevenson

The test considers whether the tortfeasor was an integral part of the employer's business, or someone who is merely ancillary to it. This includes a number of factors, whether they attend work events, wear a uniform, and have a designated work station.

Mutuality of obligations test: Ready Mixed Concrete

Is there an obligation to provide work and to perform work? – eg. **must accept work when offered**.

More likely to be an employee if:

Tortfeasor has not worked elsewhere and/or has been provided with work continuously for years.

Additional factors:

- Whether wages, taxes and national insurance are paid through the employer.
- Whether tools and equipment are provided by the employer or the worker.
- Whether the worker is being directed as to the mode of performance and to what degree.
- Whether the worker is required to wear a uniform.
- Whether the worker receives a pension.
- Whether the employer controls the work hours and where the work is being carried out.
- Whether the worker has a financial risk.

No particular factor is decisive, and all circumstances are considered.

Borrowed employees:

In some cases, employees may be lent out hired by or to another company.

Mersey Docks and Harbour Board Proper test is whether the hirer did or did not have the authority to control the manner in which the act involving negligence was performed.

Relationships akin to employment:

Where the Defendant and the tortfeasor are not bound by a contract of employment, however their relationship has the same features, the relationship can properly give rise to vicarious liability for reasons that it is akin to between an employer and employee.

Barclays Bank plc (2020) In this case, the relationship between the employer and the tortfeasor must be **analogous to an employment relationship**.

In order to identify whether there was a relationship analogous to employment, the court must look at the practical reality of the relationship between the parties.

Closely connected:

Close Connection test: Lister v Hesley Hall

There must have been a sufficiently close and direct connection between what the employee was employed to do, and the tort was committed by the employee.

Torts committed in the course of employment:

Negligent and careless act:

Employer will be liable where the employee commits a tortious act but was still acting within the authority given to him by the employer.

Diversions and detours:

Employees who make a **detour** from an authorised route will be considered as **acting within in the course of their employment**, as long as they are still engaged in the business of their employer.

However, a **new and independent journey** which is solely undertaken for the selfish purposes of the employee should not give rise to vicarious liability.

Disobedience:

If the employee **disobeyed** the employer's instructions, that means that the act they committed was **outside** of the course of employment and the employer will not be liable.

However, simply because the employer has placed an **express prohibition** on certain behaviour, it does not mean that carrying out that act will fall outside of the ambit of vicarious liability. When carrying out that act, they will still be acting **within the course of employment**.

Disobedience does not take the matter outside the scope of employment, if they simply carried out what was asked of them in a **different manner**. – eg. if a driver also took passengers on their journey of delivering mail, when they were not supposed to.

Joel v Morrison The act of an employee will fall **outside** of ordinary course of employment if they have acted on a **frolic of their own**. – they must have done something majorly different from what was expected of them. – eg. **deviating from the usual route in a major way**.

OTHER SITUATIONS:

Criminal acts:

In some cases, tortious liability will also attach to criminal acts, and a Claimant might have a claim in tort. If that is the case, the employer might be liable for the criminal acts of their employees well.

Agency:

When one party is under a duty to act for or give advice for the benefit of another on matters within the scope of their relationship, a **fiduciary relationship** is created. This will give rise to vicarious liability.

Partnership:

Partnership Act 1980 A partnership and each partner is vicariously liable for the wrongful acts or omissions of another partner, as long as the partner was acting within his authority, or whilst in the ordinary course of the firm's business.

EMPLOYERS' LIABILITY

Employers owe a **duty of care to their employees to ensure that they are safe while they are at their place of work**. This duty has been laid out both in common law and statute, and a claim may be made under both.

STATUTORY DUTIES:

There are a number of different regulations which apply to the workplace, setting out the duties of an employer.

Workplace Regs 1992:

Reg. 5 The workplace shall be maintained in an efficient state, efficient working order and good repair.

Reg. 6 Ventilation

Reg. 7 Temperature in indoor workplaces

Reg. 8 Lighting

Reg. 10 Room dimensions and space

Reg. 11 Workstations and seating

Reg. 13 Falls and falling objects.

Reg. 14 Windows, and transparent or translucent doors, gates and walls.

Reg. 17 Organisation of traffic routes

Reg. 20 Sanitary conveniences

Reg. 21 Washing facilities

Reg. 22 Drinking water

Reg. 24 Facilities for changing clothing

Cleanliness: Reg. 9

Reg. 9(2) The surfaces shall be kept sufficiently clean.

Conditions of floors and traffic routes: Reg. 12

Every floor in a workplace must:

- * Be suitably constructed for the purpose for which it is used. – eg. **Floor that is in constant use must be constructed using more sturdy materials than floor that is rarely used.**
- * Have no hole or slope or be uneven or slippery.
- * Be kept free from substances which may cause a person to slip.

Reg. 12(5) Employers must provide a suitable and sufficient handrail for staircases.

Management of Health & Safety at Work Regs 1999:

Risk assessment: Reg. 3

Employers must carry out risk assessments, assessing:

- (a) Health and safety risks to its employees to which they are exposed while at work.
AND
- (b) Health and safety risks to persons not in its employment arising out of or in connection with their conduct.

Evidence of risk assessment: Accident report book to note past accidents and committee meeting minute to see if risks were discussed.

Principles of prevention: Reg. 4

If an employer identifies a risk, they should look at Sched 1 which sets out the order for implementing preventative measures.

Hierarchy of control measures:

- a) Avoid the risk
- b) Evaluate the unavoidable risks
AND
- c) Combat risks at source – eg. by adapting processes

Health and safety arrangements: Reg. 5

Employers must **prepare and implement** suitable health and safety measures. In assessing the necessary measures, employers must have regard to the nature and size of the business.

Information for employees: Reg. 10

Employers must give information that is comprehensible to employees on health and safety risks and protective measures that should be adopted.

Employee capabilities and health and safety training: Reg. 13

Employers must provide employees with adequate health and safety training. Training should be repeated periodically and kept up to date.

Employees' duties: Reg. 14

- (i) To use machinery as per the training/instructions
AND
- (ii) To inform employer of dangers

Manual Handling Operations Regs 1992:

Reg. 2(1) **Manual handling** = an operation involving the transportation of load including lifting, carrying, pushing, pulling, using force.

Duties of employers: Reg. 4

Reg. 4(1) Each employer shall:

- (a) so far as is reasonably practicable, avoid the need for his employees to undertake any manual handling operations or work which involve a risk of their being injured; or
- (b) where it is not reasonably practicable:
 - (i) Assess manual handling operation, and
 - (ii) Take appropriate steps to reduce the risk of injury.

Reg. 4(2) The assessment shall be reviewed by the employer if:

- a) there is reason to suspect that it is no longer valid; or
- b) there has been a significant change in the manual handling operations.

Reg. 4(3) To determine if the manual handling required involves a risk of injury and the steps to reduce that risk, consider:

- (a) the physical suitability of the employee
- (b) the clothing, footwear or other personal effects they are wearing
- (c) his knowledge and training
- (d) the results of any risk assessment
- (e) if the employee is within the group identified by the assessment as being especially at risk; and
- (f) the results of health surveillance

Duty of employees: Reg. 5

Employees must make full and proper use of any system of work provided by the employer in compliance with Reg. 4(1)(b)(ii).

PUWER 1998:

Suitability of work equipment: Reg. 5

Employers must ensure that work equipment is constructed/adapted as to be suitable for the purpose for which it is used/provided.

Work equipment = any machine, apparatus, tool or installation used at work and includes any equipment used at work.

In selecting work equipment employers must have regard to:

1. the working conditions and
2. the health and safety risks in the premises/undertaking where work equipment is to be used and
3. additional risks posed by the use of that work equipment.

Maintenance: Reg. 5

Employers must ensure that work equipment is maintained in an efficient state, in efficient working order and in good repair.

Inspection: Reg. 6

Employers should set up an inspection regime as appropriate. The concept of risk assessment comes into play here as the inspection should be at suitable intervals. – **evidence of this: record of system of inspection and record of risk assessment to establish whether the risk has been identified and that preventative measures were put in place.**

Specific risks: Reg. 7

Employers must ensure that machinery, with a specific risk to health and safety, is only used by employees who are trained and who constantly use the machine. This is also the case for repairs, modifications and maintenance.

Information and instructions: Reg. 8

Employers must provide adequate health and safety information to employees who use their work equipment.

Training: Reg. 9

Employers must ensure that all persons who use work equipment have received adequate training as to how to use work equipment for the purpose of health and safety. The training should be kept up to date.

Dangerous part of machinery: Reg. 11

Employers must prevent their employees having contact with any dangerous part of, or a piece of work equipment. All guards and protective devices must be suitable for the purpose for which they are provided.

Health and Safety (Display Screen Equipment) Regs 1992:

Reg. 2 Employers must perform a suitable **analysis of the workstations** which they have provided to their staff members to be used for work purposes.

Reg. 4 Employers must plan the daily work routines of users so that their users' work on **screen equipment is periodically interrupted** by breaks/changes of activities to reduce the effect of these equipment on their health.

Personal Protective Equipment Regs 1992:

Use these regulations as a last resort.

Provision of personal protective equipment (PPE): Reg. 4

Reg. 4(1) Employers must provide employees with suitable personal protective equipment (PPE). – eg. eye protectors, gloves, footwear etc.

Evidence of this could be: record of issue of PPE equipment

Assessment of PPE: Reg. 6

Before choosing PPE, an employer/self-employed person must ensure that an assessment is made to determine whether the PPE he intends to provide is suitable and compatible with other work equipment.

Maintenance and replacement of PPE: Reg. 7

Employers must ensure that any PPE equipment provided to his employees is maintained in an efficient state, in efficient working order and in good repair.

Information, instruction and training: Reg. 9

The employer must ensure that the employee is provided with such information and training as is adequate **to enable the employee to know:**

- * The risk(s) which the PPE will avoid or limit
- * The purpose for which PPE is to be used
- * How to use the equipment and
- * Any action to be taken by the employee to ensure that the PPE remains in an efficient state, in efficient working order and in good repair as required by Reg. 7(1).

Use of PPE: Reg. 10

- * Employers must take all reasonable steps to ensure that any PPE provided to their employees under Reg. 4(1) is effectively use. – evidence of this could be: record of warning that employee should use PPE.
- * Employers must take reasonable measures to ensure that its employees use the equipment.

COMMON LAW:

Primary liability:

Duty of care and breach:

Employer's duty of care covers – to provide employees with:

Wilsons and Clyde Coal v English

- * Safe equipment
 - * A safe place of work
 - * A safe system of work
- AND
- * Competent fellow staff members (the employer must take reasonable care to ensure competency, by providing training, disciplining staff, hiring competent employees/contractors)

The employer's duty is **non-delegable**. While employers may outsource certain tasks related to discharging their obligations to an appointed agent and must take reasonable care themselves and will remain personally liable.

If the employees or the appointed agent breaches their duty and fails to exercise reasonable care, **the employer will be vicariously liable.**

The duty of the employer is to **take reasonable care**, not to ensure absolute safety.

Adequate plant and equipment – an employer must ensure that:

- * Machinery/equipment are safe, and safety features/protective clothing are provided
- * Machinery/equipment are properly maintained
- * Premises are safe and free from defects – eg. floor should not be slippery.

This duty extends to other premises to which employees are sent but only to the extent that employer is aware of a specific danger at the other premises.

Employer's Liability (Defective Equipment Act) 1969 If an employee is injured by equipment with a latent defect due to the negligence of a third party, the employer will also be deemed negligent. – eg. manufacturer.

If employer fails to provide adequate premises, they may also be liable under occupiers' liability.

Safe system of work – employers should implementing a safe system, considering:

- * The sequence/method by which work is carried out
- * The physical layout of the job
- * Providing special instructions, warnings and notices
- * Taking any safety precautions

An employer can also be held liable if the stress levels at work are high, contributing to a higher risk to employees. – **Barber v Somerset County Council**

Competent fellow workers: Latimer v AEC

Employers must **hire staff members who are competent** by carrying out checks into their background and level of experience and education. If necessary, the employer must provide adequate training.

Staff members must be sufficiently competent so as not to put other employees at risk. – eg. cleaners should be competent in cleaning and should check for and clean spillages throughout the workday.

An employer can be held liable for practical jokes but only to the extent that they knew/ought to have known that employee was a prankster.

Causation:

Usually not an issue in these cases, if the employer breached its duty and the employee suffered an injury as a result, the employer will likely be held negligent. – Ask what caused C's injury? Was it the negligence?

Vicarious liability:

Duty of care and breach:

Employers are primarily liable for their employees at common law. It may also be vicariously liable for the torts of its other employees.

Where an employee injures a fellow worker, the employer will be held liable for the negligent acts/omissions of its employees, if the employee was acting within the scope of their employment.

Acting in the course of employment:

Their actions must be closely connected to employment to be held to be carried out in the course of employment.

Wallbank v Wallbank Fox Designs Acting with spontaneous force in response to instructions in relation to work will be deemed as acting in the course of his employment.

Graham v Commercial Bodyworks Ltd Employers creating/enhancing a risk does not give rise to a sufficiently close connection between that risk and the wrongful act. – eg. employee spraying co-worker's overalls with thinning agent and setting them alight is separate from the employer as all the employer did was provide the thinning agent for work reasons.

Factors: Graham v Commercial Bodyworks Ltd

- * The wrongful act furthers the employer's aims
- * The wrongful act is related to friction, confrontation or intimacy inherent in the employer's enterprise. – including horseplay and more serious acts such as assault.
- * The employment requires the exercise of force

Causation:

Usually not an issue in these cases, if an employee breached its duty and another employee suffered an injury as a result, the employer will likely be held negligent. – Ask what caused C's injury? Was it the negligence?

Defence:

If the employee voluntarily assumes risk – high standard and the court will rarely agree to this defence.

OCCUPIERS' LIABILITY

DEFINITION:

Occupiers may be held liable if someone suffers injury or damage is caused to items due to the **state of their premises** under the Occupiers' Liability Acts (which includes the 1957 and 1984).

Example:

Anne visited Lina's house one afternoon for tea. Lina has spilled some tea onto the floor earlier and Anne slipped and fell, breaking her arm. Anne may make a claim for Occupiers' Liability and Lina will likely have to compensate her for her injuries.

Definition of "Premises":

Premises = include the buildings on the land and the land itself and includes vehicles and fixtures as well.

Disrepair that could potentially give rise to claims:

- * Disrepair
- * Bad lighting
- * Unsafe furniture or items
- * Dangerous gases/chemicals

OCCUPIER:

Occupier = someone who has control of the premises. They will be the Defendant in these claims.

None of the acts define "occupier", so we must rely on the common law to identify who the occupier is.

Occupier **need not have physical possession** of the property and need not be the owner of the property.

The occupier is the person who has sufficient **legal control of the property** to allow people to access the property or prevent them from entering.

There may be **multiple occupiers** in relation one land, and if that is the case, all of them could be liable in respect of the damage.

Example:

If a landlord rents a room to a tenant in a shared house, the tenant will have everyday control of the room and the landlord will also be the occupier by having the right to enter the room to carry out repairs. If the room is in disrepair, both the landlord and tenant could be liable for any injuries this may cause to visitors/trespassers.

Who has control?

The **level of control exercised** will be a question of fact.

Mathewson v Crump (2020) The legal owner may **not** be the occupier if they do not have sufficient control over the premises. – only visiting for inspection of the premises if there is a tenant means that there is insufficient control.

Harris v Birkenhead Corp Where a house has been purchased and the new owner fails to enter the house or take board up the premises, the **legal right to control will be with the new owners**, who will be in the best position to prevent accidents.

Example:

A compulsory purchase order has been served on the owners of a house by the council. After the purchase, the residents move out, and the council fails to board up the house. Harvey, a five-year old boy wanders into the house through the door and falls from the first floor. In this case, the legal occupier will be the council, the new buyers, despite the disrepair being caused by the original owners.

Wheat v E Lacon In relation to **commercial buildings**, even if there is an **appointed manager** managing the building and the business, the **owner** will also remain in control of the premises (in addition to the manager who will also have control).

Revill v Newbery The occupier is **not liable in every situation** where an **incident happens on the land**. Occupiers' liability only applies if the harm is caused by the dangerous conditions on the land or dangerous conduct which constitutes a continuing source of danger on the land.

If the harm is caused by the one-off actions of the occupier, there can be no claims for occupiers' liability, although there may be a claim for negligence.

Example:

Joseph is an elderly man, whose home is commonly visited by vandals and thieves, as a result, he decides to start sleeping in his shed with a shotgun. David sneaks onto Joseph's land, intending to steal. Joseph hears movements from outside the shed, so he wakes up and fires his gun through a small hole, shooting David in the arm. In this case, the fact that Joseph was an occupier does not make him liable for occupiers' liability, however, David may have a claim for ordinary negligence.

The occupier will be the Local Authority for the following:

- * Public parks
- * Highways
- * Schools

VISITORS:

Visitor = someone who invited onto or given permission (either express or implied) from the occupier to be on the premises.

If someone enters without permission, that person will be a **trespasser** rather than a visitor.

If a visitor has been given permission to enter, however, that **permission is withdrawn** while the visitor is still on the premises, this implies that they have a reasonable time to leave the premises, and if they do not do so, that visitor will become a trespasser.

If a visitor **enters the premises for their own calling**, they will be expected to appreciate and guard against any special risks. – eg. **electricians**.

Implied permission:

Even if an entrant does not receive express permission, permission may be **implied from the conduct** of the occupier or the **circumstances**. If someone has implied permission, they will be legally classed as a visitor.

Examples of entrants with implied permission:

- * Deliverymen
- * Postmen
- * Door-to-door salespeople
- * Meter readers
- * Repairmen

Legal rights to enter:

Anyone who has a legal right to enter will also be classed as a visitor, despite not being given permission by the occupier. However, they must enter in order to allow them to carry out their legal duties.

Examples of entrants with legal right to enter:

- * Police officers
- * Ambulance workers
- * Firefighters

Walkers and ramblers:

Countryside and Rights of Way Act 2000 The public has a general right to **walk over open lands** classed as "mountains, moors, heaths or downs", this right is called the **right to roam**. While walkers and rambles are exercising a legal right to roam when walking across these open lands, they will be **deemed to be trespassers** under the acts.

Public rights of way:

McGeown v Northern Ireland Housing Anyone walking across public areas, exercising their public right of way (walking on the street) is not defined as a visitor, and will be **deemed to be trespassers** under the acts.

The reason for this is because it is impossible to predict every type of person who may use these rights of way, and it is impossible to allow each one of them to safely use the right of way.

RISK CREATED BY THIRD PARTIES:

In some cases, the risk is created by a third party, rather than the occupier. If this is the case, we need to look at the rules that apply depending on who has created the risk.

Risk created by an independent contractor:

If there is an **independent contractor** who works on the premises and a visitor is injured because of the independent contractor, the occupier will have met their duty if they took **reasonable care** in entrusting the work of the contractor **and** could reasonably conclude that the **contractor was competent**.

Risk created by a stranger:

Wheat v E Lacon If the risk has been created by a stranger, the occupier will not be responsible for the injuries/losses caused.

DUTY OWED TO LAWFUL VISITORS:

s.2(2) Occupiers' Liability Act 1957 Duty owed by the occupier to lawful visitors. The occupier must take reasonable care to ensure that visitors can safely use the premises.

There is **no requirement to provide absolute safety**, however, the occupier must have taken reasonable steps to protect visitors against harm. – eg. this would include giving warning of danger.

If there has been a breach of occupiers' duties, the rules on causation will apply.

Ward v The Ritz Hotel While taking into safety standards is simply a recommendation and not a legal requirement, failing to follow safety standards could show that the occupier had not taken reasonable care.

Darby v National Trust There is **no requirement to warn about obvious risks**. Land with ponds and rivers on them do **not** need to have a sign warning about the danger of drowning.

Clare v Perry When deciding which steps are reasonable for an occupier to take to discharge their duty, look at the **behaviour reasonably expected of a visitor**. – occupiers need not guide against unusual or erratic behaviour such as climbing over fences/walls.

Duty owed to children:

s.2(3)(a) Occupiers' Liability Act 1957 The occupier must take into account when looking after the premises that **children visiting will be less careful than adults**.

Perry v Butlins Holiday World The occupier should not have areas where children would easily injure themselves near a playground or an area where children's shows are commonly performed. – eg. sharp, hard edges near a playground.

Jolley v London Borough of Sutton The occupier should **not** keep fixtures or chattels on the land which are dangerous but **would attract children**. Identify whether it was foreseeable that the fixture or chattel would attract children. – eg. an old boat with a rotting floor, old tree house.

Glasgow Corp v Taylor Bushes/shrubs with **poisonous berries** should be fenced off with a warning notice because it would attract children. The occupier must know that the berries are poisonous, otherwise they would not have a duty to warn against the risk.

Duty owed to skilled visitors:

s.2(3)(b) Occupiers' Liability Act 1957 Professional, or **skilled visitors** are expected to **anticipate** certain special risks and avoid accidents.

Roles v Nathan Chimney sweeps must anticipate the risk of carbon monoxide gas if they work on the chimney while it is alight.

Ogwo v Taylor Fire-fighters may have a claim for occupiers' liability if the **fire was caused by the negligence of the owner** and the **fire-fighter is injured** while trying to put out the fire. This argument can only be relied on by the firefighter if the fire is so severe that there is no amount of care or expertise that could have protected the fire-fighter.

Defences:

Contributory negligence:

Visitors ought to be responsible for their own safety, allows for the defence of contributory negligence.

Warning notices:

Occupiers may be able to **exclude liability** by placing **warning notices** on the premises.

s.2(4)(a) OLA 1957 Warning does **not** automatically absolve an occupier from liability. It must enable the visitor to be **reasonably safe** in order to discharge the occupier's duty of care.

Note the difference between a warning notice and a notice seeking to exclude or limit liability – former seeks to discharge an occupier's duty while the latter seeks to prevent it from arising in the first place.

DUTY OWED TO TRESPASSERS:

Occupiers' Liability Act 1984 Duty owed by the occupier to persons who are **not** visitors.

Non-visitors = anyone who is not invited/permitted to be on the premises by the occupier. This includes **trespassers**, although the duty owed to trespassers is limited.

Requirements for this duty to arise in relation to trespassers:

- * The occupier must be **aware of the danger** and aware that a trespasser might encounter it.
- * The occupier must **take reasonable care** to ensure that the trespasser does not suffer personal injury. Risk of injury must be due to the **state of the premises** rather than as a result of an activity on them.

Defences:

Contributory negligence:

Trespasser ought to be responsible for their own safety, allows for the defence of contributory negligence.

Warning notices:

Occupiers may be able to **exclude liability** by placing **warning notices** on the premises.

s.1(5) OLA 1984 A warning notice **will discharge the occupiers' duty** if the **occupier took reasonable steps to warn** trespassers of the danger on the premises or discourage them to take the risk.

Note the difference between a warning notice and a notice seeking to exclude or limit liability – former seeks to discharge an occupier's duty while the latter seeks to prevent it from arising in the first place.

ADDITIONAL DUTIES – LANDLORDS:

Defective Premises Act 1972 A landlord is obliged/permitted to carry out **repairs** to the premises and so has a **duty of care in respect of the state of the premises**. – this duty of care is to take such care as reasonable in the circumstances to see that they are reasonably safe from personal injury/damage to their property.

This duty covers defects:

1. Within the scope of the landlord's repair obligations/rights AND
2. Which the landlord knew/ought to have known about.

This duty is owed to anyone who might reasonably be expected to be affected by this defect.

PRODUCT LIABILITY

If a person is injured by a faulty product, they can:

- * Bring a **breach of contract claim** for breach of one or more implied terms of the contract under the **Sale of Goods Act 1979** (business to business contracts) or the **Consumer Rights Act 2015** (business to consumer contracts)
- * Claim for negligence under the common law OR
- * Make a claim under the **Consumer Protection Act 1987**

The **contract law claim** requires privity of contract which might be a problem in many cases, however, if the Claimant was a party to the contract, then it is easier to bring a claim for breach of contract than to establish negligence.

The **tort claim** is fault-based, so fault of the Defendant must be proven, which will require a lot of evidence to be provided by the Claimant.

COMMON LAW NEGLIGENCE:

Product liability = a manufacturer's legal responsibility for injury or damage caused by a product that they have made or sold.

This type of liability applies when a product is defective or dangerous, and it causes harm to a consumer.

Manufacturers are liable in respect of injuries sustained because of defective products.

Requirements:

- * **Breach of duty:**
 - The standard in negligence applies. The manufacturer must have fallen below the standard of care expected of them.
 - A manufacturer must take **reasonable care** to the consumer who uses the manufacturer's product if the manufacturer doesn't expect the product to be examined after leaving the manufacturer and before reaching the customer (which is common for manufactured goods).
 - The Claimant must show that there has been a **manufacturing or design defect**.
- * **Causation:**
Damage must have been caused by the faulty product.

Who may be liable?

- The manufacturer
- The retailer of the product is not liable.

To whom the duty is owed?

- The duty is owed to anyone whom the manufacturer could reasonably foresee as likely to be affected by a defect in the product.
- This includes people who might come into contact with the product. – eg. **members of the consumer's family**.

What is covered?

- Damages for personal injury
- Damage to property
- Consequential economic losses

CONSUMER PROTECTION ACT 1987:

As it is difficult to prove fault on behalf of the manufacturer, the Consumer Protection Act introduces **strict liability** in relation to defective products and the Claimant will not need to show that the Defendant was at fault.

However, do not confuse **strict liability** with **absolute liability**. The Claimant need not prove fault, but simply that there has been a defect in the product.

Consumer Protection Act 1987 Establishes that liability is imposed in respect only of damage caused by a **defect in a product**. A product is defective if its **safety** does not reach the level a **reasonable person** is entitled to expect.

Product = includes physical goods and electricity. Does not include services. – **s.1(2)(c) CPA 1987**

Defective = being below the standard of safety which one is generally entitled to expect.

Who may be liable? s.2 CPA 1987

- * **The manufacturer/producer – includes:**
 - Manufacturers of the final product
 - Manufacturers of components – **if the defective element is that component**.

- Anyone extracting materials to obtain non-manufactured product
- Anyone carrying out a process to obtain a non-manufactured product

* **Abstractors**

- * Persons who are neither manufacturers or abstractors but who give agricultural products an essential characterisation by means of **industrial processes**. – **such as frozen peas**.
- * **EU Importers** – Where the producer is in the EU, the liability for the product lies on the manufacturer. However where the manufacturer (A) is from Japan and it is imported into Germany by B and then reimported into UK by C, A and B will be strictly liable under the Act.
- * **Own-branders** – A supplier who does not manufacture or produce the product, but simply brands them to make it appear as if they have manufactured/produced the product.

The supplier of the product is only liable if:

- * The Claimant requests the name of one of the above parties from the supplier.
- * It is not reasonably practicable for the Claimant to identify those persons independently.
AND
- * The supplier does not identify the manufacturer/importer.

Time limits:

Must be brought within **3 years** from the date on which the action accrued, or the date of knowledge – this is subject to a 10-year overriding limit.

For non-personal injury or death claims: action must be brought within **10 years** from the relevant time.

Defence:

- * The **damage did not exist** when the product was supplied.
- * The Defendant was **not acting in the course of business** when they supplied the product.
- * **The State-of-the-art defence or "Development risk" defence:** could not have supplied a better product because the knowledge/scientific advancements at the time did not allow for the creation of a better product.
- * The defect was caused as a result of fulfilling a **statutory requirement**.
- * The injury/damage was caused, partially as a result of the Claimant's own **contributory negligence**. – this is a partial defence.
- * The Claimant has **voluntarily assumed the risk** after becoming aware of the defect by deciding to choose the product despite the risk. – this is also a partial defence.

Exclusion of liability:

s.7 CPA 1987 Liability **cannot be excluded/limited** under the CPA 1987 by including a contractual term in the contract or giving notice to the Claimant.

Consequences of the tort:

The CPA 1987 imposes a **strict liability** offence, meaning that there no need to establish that the tortfeasor intended to cause a harm.

The Claimant does not need to prove negligence, all that needs to be established is that the **product was defective and caused the damage**.

Remedies:

Damages are recoverable for:

- * Personal injury and death
- * Damage to private property (if it is more than £275)

Recovery is NOT allowed for:

- * Damage to the defective product itself
- * Damage to business property
- * Damage to private property below £275.

NUISANCE AND THE RULE IN RYLANDS V FLETCHER

PUBLIC NUISANCE:

Public nuisance = nuisance that disturbs the comfort and convenience of life for a section of the public.

Public nuisance is not limited to the protection of interest in land.

Elements of public nuisance:

- * That the persons affected by the nuisance constitutes a **public or a section of the public**.
- AND
- * If an individual claimant is making a claim, they can only do so if they have suffered **special and particular damage**, over and above the inconvenience suffered by the public at large.

Examples of public nuisance:

- * Creating danger on/obstructing the highway
- * Carrying on an offensive trade
- * Selling food unfit for consumption
- * Releasing toxic fumes into the air

Consequences of the tort:

While public nuisance is a tort, it is **also a criminal offence**, and therefore, carrying out this tort might attract criminal prosecution and related penalties, including a prison sentence.

Public nuisance is a **strict liability** offence, meaning that there no need to establish that the tortfeasor intended to commit public nuisance, all that needs to be established is that the act has been committed.

PRIVATE NUISANCE:

Private nuisance = violation of real property rights involving either an **interference with proprietary rights of the occupier**, including a legal interest such as an easement, or unreasonable interference with the occupier's right to use and enjoy it, which is an inherent facet of a right of exclusive possession.

Requirements:

Elements of private nuisance:

- * Violation of proprietary rights/the occupier's right to use and enjoy the land
- * The interference must be unreasonable
- AND
- * The interference must be continuing – **cannot simply be one isolated event**.

Examples of private nuisance:

- * Encroachment on a neighbour's land such as overhanging tree branches.
- * Damage to a neighbour land.
- * Nuisance by interference with a neighbour's quiet enjoyment of their land.

While damage may be sufficient, it is not an essential requirement to assert a claim in nuisance through interference with the amenity of the occupier's land.

Damage must be a foreseeable result of the Defendant's actions. – **damage cannot be too remote**.

Nuisance may be caused by inaction or omission as well as some positive activity – this must lead to an unreasonable interference, which goes beyond the normal. – **such as depriving neighbours of sleep**.

Factors to look at when determining unreasonability:

- Intensity and duration of interference – the shorter the duration of the act, the less likely that the use will be found to be unreasonable.
- Sensitivity – No nuisance where damage was result of unusual sensitivity.
- Location – including the character of the neighbourhood.
- Utility of the Defendant's conduct – where cricket balls entered the Claimant's garden several times a year, the court held that the social utility of the cricket club outweighed the Claimant's inconvenience.
- Malice

Liability:

Creator of the nuisance:

The creator of the nuisance needs neither own nor occupy the land from where the nuisance originates.

Occupier of the land:

The occupiers must have had the knowledge of the existence of a drain laid by a trespasser, without the consent of the occupier, which caused the risk of flooding into the neighbours' land – the occupier was therefore liable for nuisance as he had continued and adopted the nuisance.

Owners of the land:

Council which granted permission to a go-kart club to use their land for the purpose of using go-karts were held liable in nuisance for noise caused to the claimant who lived close to the go-kart track.

DEFENCES:

Even if a claim for nuisance is made against the tortfeasor, the tortfeasor may be able to rely on one of the following defences.

Prescription:

A person can be exempt from liability for a nuisance if the conduct that caused the **nuisance has been ongoing for a sufficient length of time** and the person who is complaining about the nuisance has known about it and failed to take action.

Defence of prescription can be raised if nuisance remains actionable but is never claimed for **at least 20 years**.

Statutory authority:

Where **Parliament authorises an activity** which creates the nuisance, the claim for nuisance is not actionable as long as all due care and skill has been taken to avoid the nuisance. – **Allen**

In this case, the tortfeasor will claim that they have been given authority by Parliament by relying on a specific statute.

On the other hand, it is also important that they are **not** exercising their statutory powers **negligently**, because if that is the case, they can no longer rely on this defence.

Lawful use of land:

If the tortfeasor is able to successfully argue that the **nuisance took place as a result of the lawful use of the land**, then they will also have a defence to the nuisance action.

Non-defences:

- * That **planning permission** was granted for the use. – Although this appears to fall within one of the defences, whereby the nuisance was due to the "lawful use of the land", this is not acceptable in cases where planning permission was granted for the use, because despite this, the tortfeasor will have an additional duty to not cause nuisance.
- * That nuisance **was in existence before** the Claimant moved in.

REMEDIES:

There are a number of different remedies that can be awarded to the victim of nuisance (private or public).

Key remedies:

1. Injunction – best option
2. Damages
3. Abatement

Your client may apply for more than one of these at once as the most effective method to further their interests. – **eg. instead of simply applying for damages, apply for an interim and a final injunction together with damages**.

Injunction:

The Claimant may force the Defendant to **stop the activity** by applying for an **injunction**. – however, please note that it is in the court's discretion whether to grant this remedy.

In any event, applying for an injunction is the Claimant's **best option**.

Test for an injunction:

1. Damages must be an **inadequate** remedy. – **eg. if the nuisance is disruptive to someone's quality of life or business operations**.
AND
2. The nuisance is **continuing**. – **it is constant rather than a one-off event**.

Types of injunctions to apply for:

- * **Quia timet injunction** – apply for this injunction if the damage/nuisance has not yet occurred, but the Claimant is expecting that it would occur. This injunction would prevent the nuisance. – **Hext v Gill**

Example:

A construction company obtains planning permission to carry out extensive construction work on a land next to residential houses. These works include excavation works, and the residents apply for a quia timet injunction to prevent noise, air and dust pollution and vibration damage.

- * **Interim prohibitory injunction** – apply for this injunction to stop an existing nuisance while the **final hearing is pending**.

Example:

Abbie's neighbour is making loud noises by using industrial printing machinery at night, so she struggles to fall asleep. After asking them to stop (without success), she makes a claim. While the hearing is pending, she applies for an interim injunction to stop the noise in the meantime.

- * **Final prohibitory injunction** – apply for this injunction to **stop an existing nuisance** at the final hearing. Typically, the tortfeasor will be required to stop the nuisance **within 14 days** from the injunction, however, the court may decide that the nuisance **must stop immediately** once the order is granted.

Example:

Abbie's neighbour is making loud noises by using industrial printing machinery at night, so she struggles to fall asleep. She makes a claim asking the court to grant a final prohibitory injunction, requiring her neighbour to stop using the machinery at certain times of the day.

- * **Final mandatory injunction** – apply for this injunction to require the tortfeasor to **carry out certain positive acts** to reduce/stop the nuisance.

Example:

George's neighbour installs a drainage system that redirects water onto George's land, causing flooding. George could make a claim requesting the court to grant a mandatory injunction requiring his neighbour to alter the drainage system to stop the flooding on George's land.

Damages:

Damages may be awarded to **compensate the victim** of the nuisance and for the damage caused.

In order for damages to be granted, the damage caused by the nuisance must be **quantifiable**.

Damages may also be too remote in some cases, so the court must consider the **remoteness of damages** rule when calculating the damages to be granted. The damage that has occurred to the Claimant must have been reasonably foreseeable by the tortfeasor.

Damages for public nuisance:

One of the requirements for a public nuisance claim is that the Claimant must have suffered **special damage** as a result of the nuisance.

Damages for private nuisance:

Private nuisance claims allow for damages to be granted where there has been a direct interference with the land.

Damages that may be claimed for private nuisance include:

1. Loss of enjoyment of the property – owner has a right to quiet enjoyment.
2. Injury to the land
3. Economic loss
4. Past losses/inconvenience

Abatement:

The Claimant may remedy the nuisance themselves (self-help), by **carrying out certain works**. – eg. installing soundproof wall panels.

Give notice to the tortfeasor prior to carrying out the works so that they are given an opportunity to stop the nuisance before spending money.

Later, the Claimant could claim the money spent to remedy the nuisance back from the tortfeasor.

THE RULE IN RYLANDS V FLETCHER:

Rylands v Fletcher **The rule in Rylands v Fletcher:** The rule imposes strict liability on a person who brings onto their land something that is likely to do harm if it escapes. – **viruses or hazardous chemicals**.

Requirements:

Requirements: Rylands v Fletcher

1. The Defendant used the land in a **non-natural way** for their own purposes.
2. As part of this non-natural use, the Defendant brings something onto the land, which, if it escapes, is it likely to do damage.
3. The hazardous thing **escaped**, and the victim suffered a damage as a result.
4. This does **not** need to be a continuing state of affairs. – **an isolated escape is sufficient**.

If, due to the operation of a factory, hazardous chemicals escape and contaminate the groundwater or nearby rivers, the person who operates the factory may be liable under the rule in Rylands v Fletcher.

Strict liability – Claimant only needed to show that the damage was caused by the Defendant, no need to prove negligence.

Consequences of the tort:

Rylands v Fletcher imposes a **strict liability** offence, meaning that there no need to establish that the tortfeasor intended to cause a harm, all that needs to be established is that the act has been committed.

Liability is also **personal** to the person who has committed.

Defences:

There are a number of defences that may apply in this case as well.

Possible defences:

- * The escape was caused by the **unforeseeable acts of a stranger** (however, this cannot be an independent contractor the Defendant has hired).
- * The escape was caused by an **unforeseeable natural circumstance**. – eg. **an earthquake**.
- * The Claimant's **contributory negligence**, contributing to their own loss.
- * Statutory authority.

BREACH OF STATUTORY DUTY

INTRODUCTION:

There are numerous statutes imposing duties on private individuals, companies and/or public bodies.

These statutes **may or may not prescribe** whether non-performance of the duties set out in the statute will amount to **tortious or other liability**.

Some breaches of statutory duty may **not** even give rise to a cause of action under the statute itself. As a result, the court has made decisions as to which statutory duties should attract liability for a breach.

If any **statute imposes a duty** in the circumstances where the Claimant was injured and **prescribes** that the person in breach should be liable in **tort**, the breach of that duty can be used to **prove liability** instead of the duty owed under negligence, making the court process simpler.

ESTABLISH A TORT CLAIM FOR BREACH OF STATUTORY DUTY:

You may be acting for a **Claimant client who has suffered an injury** as a result of a breach of statutory duty. If this is the case, they would want you to bring a claim in tort to recover compensation on their behalf.

The general rule:

The statute itself **may or may not prescribe** whether a claim in tort may be brought for breach of the duty.

In some cases, an act may provide that breach of the duty cannot be used in a civil case, and if that is the case, you cannot sue in tort for the breach.

s.69 Enterprise and Regulatory Reform Act 2013 Any breach of duty which arises out of the health and safety regulations that applies to employers, **cannot give rise to tortious liability** unless the legislation itself specifically allows Claimant to make civil claims.

X v Bedfordshire County Council By simply having breached a statutory duty, the Defendant is **not automatically liable in tort**.

When is it possible to bring a tort claim?

Two routes to bring an action for breach of statutory duty in tort:

1. If there is **express wording** in the act to say that the Claimant could bring a claim.
2. Parliament has shown an **intention** that the Claimant should be able bring a claim. – **X v Bedfordshire County Council**

Identify this intention by considering the following factors:

1. Who was meant to benefit from the statute
2. Whether there are alternative remedies available for the breach
3. The level of detail in the statute itself
4. The background to the legislation
- AND
5. The type of harm involved

No single factor alone may be used a conclusive factor in establishing statutory duty, but rather, all the factors should be taken into account together.

Who was meant to benefit from the statute:

The court will consider whether the statute was meant to confer a benefit to the **general public or individuals** (in which case it would create individual rights).

Ex parte Island Records Ltd A statute providing that it was a criminal offence to record the live performances of musicians without their consent was deemed to benefit musicians. – **in this case, musicians would have the right to bring a civil tort action in addition to reporting this activity to the police.**

A claim for statutory duty can **only** be brought if the statute aimed to confer a benefit to **individuals or a class of individuals**.

X v Bedfordshire County Council In some cases, even if the statute is aimed at protecting certain classes of individuals, the court may find that the case was **aimed to benefit society as a whole**. A statute aimed to **protect children from abuse** and provide **improved education services** was deemed to benefit society and not only children.

The Claimant must show that **they fall within the class** of persons intended to be protected by the statute. – **eg. for an act that was passed for the protection of doctors, the Claimant must be a doctor.**

Whether there are alternative remedies available for the breach:

The statute itself may or may not provide for alternative remedies as a result of a breach of duty.

If there is an **alternative remedy provided** in the act, the court will **generally** understand that Parliament will have meant for this remedy to be the **only possible remedy** and the courts will not allow for a separate tort claim to be brought.

Todd v Adams Where the relevant statute allows for **criminal liability** of the person in breach, giving rise to fines, it is **unlikely** that the statute will have also intended for a **separate civil claim** to be brought against the Defendant in addition to the fine.

Alternative remedy due to the nature of the Claimant's situation:

In some cases, even if the act does not set out an alternative remedy, if the Claimant were to have an alternative remedy due to the nature of their situation, the court is **unlikely** to allow for a tort claim.

Olotu v Home Office Where the **statutory limit** on how long a suspect may be kept in **custody** has been breached, a tort claim was not allowed, because the suspect will have other remedies to use, such as a **bail application or the judicial review procedure**.

Phelps v Hillingdon Borough Council In the case of **misdiagnosed dyslexia**, a tort claim was not allowed, as parents would be able to go through any **appeals procedures and make an application for judicial review**.

Where the alternative remedy is inadequate:

Groves v Winbourne If the alternative remedy is the payment of a fine which is **inadequate compared to the harm caused**, the court may decide that a claim could be made in tort. However, it is important to note there have been other cases after this one, which seem to suggest, that this case is less likely to be applied by the courts, unless there is a large discrepancy between the harm caused and the compensation.

Example:

A factory worker gets his arm amputated by an unfenced machine. There is a statute providing for these particular types of machines to be fenced due to the high risk of harm these machines could cause. The same statute provided that the remedy for a breach would be a £100 fine which could be used to compensate anyone who suffers a harm due to the breach. In this case, the court may deem the remedy inadequate and allow for a separate tort claim.

The level of detail in the statute itself:

X v Bedfordshire County Council The **more detailed** the statutory provisions, the **more likely** that the courts will **imply a liability in tort**. It is **unlikely** that Parliament intended to create tortious liability where they have used **general language** such as "safeguard" and "protect".

The background to the legislation:

When the courts are attempting to work out Parliament's intention, they will look at the background of the legislation to find clues.

Ziemniak v ETPM Deep Sea The courts will look at **earlier legislation and Hansard** to establish what the legislation intended and if tortious liability arose in the earlier legislation, it is likely that the courts would allow for this liability to arise again in the new legislation.

The type of harm involved:

Cullen v Chief Constable Tort law exists to protect victims from personal injury, property damage or economic loss. Where the type of harm is **inconsistent with the type of harm typically recovered in tort law**, the court is also unlikely to allow for a claim in tort. – **eg. loss of liberty is not something that tort law would allow Claimants to claim for.**

ELEMENTS OF THE TORT:

After the court decides that a particular statutory provision has been breached, allowing for a cause of action in tort, the court must decide whether there has been a breach, and whether the damage suffered by the Claimant falls within the damage envisioned by the statute.

Breach of duty:

The court will read the wording of the act to identify what the duty set out in the statute was and **whether it has been breached**.

R v East Sussex County Council, ex parte T Where certain sections in the statute mention a **list of considerations** that the council is allowed to take into account when making decisions, however, the specific section which the Claimant is relying on does not mention these considerations, it is unlikely that Parliament will have intended the council to take into account these considerations when making decisions.

Example:

The council has been providing home tuition to a child who was unable to go to school as she has had a long-term illness. This home tuition involved five contact hours per week. To save costs, the council decided to reduce the contact hours to three hours per week. When deciding whether the council was in breach of their duty, the court will look at the wording of the statute.

In the statute providing for home education for children with long-term illness, there is mention of financial considerations in several different sections, except for the one which set out the way in which the council should decide how many hours are required to provide suitable education. The court held in this case, that finances should not have been taken into account by the council in this case.

In addition to considering whether there has been a breach of duty, the court is also going to consider the **degree of fault required** by the statute to constitute a breach.

If a statute imposes an **absolute duty**, and the court finds tortious liability, this liability will be strict liability and the Defendant will be liable even if they could not have prevented the injury/harm.

Damage:

Gorris v Scott The damage suffered by the Claimant must also be **the type which the statute was passed to prevent**.

Defences:

Voluntary assumption of risk and **contributory negligence** both apply as defences.

REMEDIES

INTRODUCTION:

The key remedy for tortious liability is **compensation** for the loss and damage caused as a result of the tort.

The Claimant may seek compensation for the following types of losses:

1. Loss caused to a person (loss in terms of loss of value to property or financial loss)
2. Personal injury
3. Reputational damage (if quantifiable).

PURE ECONOMIC LOSS:

Pure economic loss = financial loss suffered by a person/company which is not accompanied by any physical damage to their person or property.

Compensation for pure economic loss includes:

- * Compensation for **financial losses** made as a result of a **bad financial decision** (however, this may be recoverable if this is due to negligent misstatement).
- * Compensation for **financial loss which does not directly flow from damage** to the Claimant or their property.
- * Compensation for **loss of profits** if there is **no physical damage** to property. – eg. **damage to a computer system**.
- * Compensation for **damage to property** which does **not** belong to the Claimant.
- * Lost opportunity
- * In relation to **product liability claims**: compensation for **damage to the defective product** itself. – **Murphy v Brentwood District Council**

These claims must be brought in contract by the other party to the contract rather than tort, and it is done under the Sale of Goods Act 1979 or Consumer Rights Act 2015.

However, **consequential economic loss** may be recovered along with damages for physical injury/damage to property.

Example:

A restaurant suffers a short circuit due to the work of a negligent electrician. As a result, the fridge is now damaged and all the food spoils in the fridge.

The following losses arise:

1. The fridge is damaged – This is damage to property and recoverable.
2. The food in the fridge is spoilt. – damage to property and recoverable.
3. The restaurant will not be able to operate or even purchase a new fridge until the short circuit is ongoing and will. Lose out on profits – this is consequential economic loss and also recoverable.
4. The restaurant will have suffered a loss of reputation – this could be quantified and may be recoverable.
5. As a result of the loss of reputation, the restaurant has less customers and the restaurant estimate that they will have lost out on £300,000 worth of profits per annum. – this is pure economic loss and not recoverable.

Pure economic loss may be caused by:

- * A negligent act – eg. by accidentally cutting through the electricity supply to a factory, thus shutting the entire factory down.
- OR
- * A negligent misstatement – eg. by giving negligent financial advice to the Claimant where the Claimant loses out as a result of the negligent advice.

General rule:

No duty of care is owed in relation to pure economic losses, so **no negligence claim** may be lodged in relation to these types of losses.

Exception:

Hedley Byrne v Heller Pure economic loss may be **recoverable** if caused by **negligent misstatements** and if there has been a **special relationship** between the Defendant and the Claimant.

Elements of negligent misstatement:

1. The Defendant knew that the Claimant was likely to rely on the Defendant's advice without independent enquiry.
AND
2. The advice is required for a purpose which is made known to the Defendant.

Example:

If the Claimant asks their accountant for a report, and the accountant negligently makes an error on the report, if the Claimant then relies on the report and loses out, they will be able to make a claim.

PSYCHIATRIC HARM:

In a negligence action, the Claimant may recover compensation for personal injury which includes the **physical impact of the injury and its mental consequences**. – eg. anxiety, distress, any other psychiatric harm.

General rule:

Damages are **not** payable for psychiatric harm where there has been **no physical impact**. However, there are **some exceptions**.

There are two different types of victims in relation to psychiatric harm.

In either case, damages will **only** be recoverable if the psychiatric harm is a **medically recognised psychiatric condition**. – eg. post-traumatic stress syndrome.

If a Claimant suffers psychiatric harm together with a physical injury, the psychiatric harm will be labelled as **consequential** psychiatric harm and the ordinary rules of recovery will apply.

Primary victims:

Primary victim = a victim in the actual event who experiences a risk of physical injury. – eg. Emily, seeing a block of concrete falling right next to her will be a primary victim even if not injured.

A primary victim may recover remedies:

- * **If they have suffered a physical injury** themselves in addition to their psychiatric injury. In this case, they can **recover their losses for both** physical and psychiatric injuries.

Page v Smith In this case, once physical injury was foreseeable, there is **no requirement to prove** that the **psychiatric injury** was also **foreseeable**.

Example:

Harold was involved in a car accident. He ends up with a head injury due to another road user's negligent driving. He now suffers from post-traumatic stress disorder as a result of the incident. He may recover his losses for his head injury and PTSD.

- * **If there was a foreseeable risk of physical injury to them, but the primary victim was ultimately not harmed**, then they may recover their losses for their **psychiatric injuries only**.

Page v Smith In this case, once physical injury was foreseeable, there is **no requirement to prove** that the **psychiatric injury** was also **foreseeable**.

Dulieu v White Psychiatric injury may only be claimed in this case if it was caused by the Claimant's **reasonable fear for their own safety**.

Example 1:

Harold was involved in a car accident. He believed he was about to die or be severely injured, however, he only suffers a minor scrape to his knee. He now suffers from post-traumatic stress disorder as a result of the incident. He may recover his losses for his PTSD, despite not suffering any substantial physical injuries.

Example 2:

Phoebe, washing the dishes in her home will be able to claim damages if a car crashes into her kitchen and she suffers a shock leading to a miscarriage. This is the case even if she is unharmed.

The Egg shell skull rule also applies to these Claimants.

Note that where a passer-by joins in as a rescuer, they will be considered a primary victim.

Where the primary victim only suffers pure psychiatric harm:

If your client is claiming that they have suffered a psychiatric injury only, without any physical damage, there is a higher threshold that they need to meet.

A primary victim can only recover remedies for psychiatric injury if the psychiatric injury was:

- * A medically recognised psychiatric illness
AND
- * Caused by a sudden shock

A medically recognised psychiatric illness:

Your client will need to obtain a formal medical diagnosis to claim for these illnesses.

Examples of recognised psychiatric illnesses:

- * Post-traumatic stress disorder (PTSD)
- * Acute stress disorder (ASD)
- * Adjustment disorders
- * Depression and mood disorders
- * Major depressive episodes
- * Specific phobias – including vehophobia, the fear of driving which could be caused by a car accident.

Caused by a sudden shock:

Alcock Sudden shock = a person realising that a horrifying event is about to happen by their own senses (sight, sound).

The condition caused by the sudden shock may either be a mental or physical condition. – **miscarriage, heart attack or PTSD as a result of the shock.**

Where the primary victim suffers both a physical injury and psychiatric harm:

If your client has suffered a physical injury, there is no need to rely on the fact that the psychiatric injury was a recognised injury. There is no need for a formal diagnosis. – **as a result, simple mental distress is sufficient (upset, anxiety).**

This is because the presence of a **physical injury supports the victim's claim** that they have suffered a psychiatric trauma, making it much more straightforward to **establish a link** between the incident and the resulting psychological impact.

Secondary victims:

Secondary victim = a victim who is not in the area of danger where they could have apprehended a risk of physical injury, but suffers a harm, nevertheless.

Historically, secondary victims could not claim compensation, however, exceptions to this rule have been developed, allowing for secondary victims to recover compensation in some circumstances.

A secondary victim is only owed a duty of care if all of the following conditions are satisfied: Alcock Paul v Royal Wolverhampton (2024)

1. The Claimant suffered a **medically recognised psychiatric injury**.
2. This injury has been suffered as a result of **seeing or hearing the accident or its immediate aftermath**.
3. There was a **relationship of love and affection** between the Claimant and the primary victim.
4. It must have been **reasonably foreseeable** to the tortfeasor that the Claimant might suffer psychiatric injury by shock.
5. There is **causal link** between witnessing the accident and the psychiatric injury.
AND
6. There must have been **proximity** between the Claimant and the accident or its immediate aftermath in both time and space.

A medically recognised psychiatric illness:

Your client will need to obtain a formal medical diagnosis to claim for these illnesses.

Examples of recognised psychiatric illnesses:

- * Post-traumatic stress disorder (PTSD)
- * Acute stress disorder (ASD)
- * Adjustment disorders
- * Depression and mood disorders
- * Major depressive episodes
- * Specific phobias – including vehophobia, the fear of driving which could be caused by a car accident.

Relationship of love and affection:

Paul v Royal Wolverhampton (2024) Proximity means proximity of relationship between the claimant and the victims or those who have been endangered. This requires a **relationship of love and affection**. – **This means a close family member or other loved one.**

McFarlane v EE Caledonia Bystanders cannot make a claim, despite the fact that they have suffered an injury.

Proximity:

Accident = an **unexpected incident** caused unintentionally whereby violent causes result in injuries or a risk of injuries.

Proximity in **time and space** between the Claimant and the accident or its immediate aftermath is a key requirement. – The Claimant must have had a **physical sense** of the accident.

McFarlane v EE Caledonia Being told about the accident does not qualify a victim to make a claim.

Simply **seeing the event on television or reading it** on newspaper is also **not** sufficient, unless the victim is able to **spot the loved one** on the television as one of the primary victims.

Being at the scene of the accident and witnessing its immediate aftermath will be sufficient to make a claim.

Paul v Royal Wolverhampton (2024) There is **no requirement** that the Claimant has suffered a **sudden shock** or that they were themselves exposed to the accident.

The Claimant must have experienced the event as **one single event** rather than a number of separate events (even if linked to the accident), unless the separate events were very close in time to each other and close in time to the accident.

Taylor v A Novo No claims can be made for injuries suffered at a second event (relating to the first event) if the second event happened at a different time from the first accident.

Excluded categories of claimants:

There is generally recovery for psychiatric injury for **police officers, rescuers, firemen and medical professionals** who attend the scene. Rescuers must be exposed to some danger, and they are expected to be of the fortitude of a reasonable person.

Rescuers who attend the scene will be classed as primary victims, and rescuers who did not attend the scene will be classed as secondary victims.

Paul v Royal Wolverhampton (2024) If a doctor was **negligent in failing to diagnose a patient**, causing the death or medical emergency, they owe a duty to the patient but **not the patient's loved ones** or close family members. This is the case even if those loved ones or close family members apprehended their loved one's death or medical emergency as a result of the doctor's negligence.

DAMAGES FOR PERSONAL INJURY:

If the tortfeasor causes personal injury or death, different rules apply in relation to the remedies that can be recovered.

Two different scenarios to consider in relation to personal injury:

- * If the victim is alive
- * If the victim dies

The damages granted in tort will aim to **put the injured party in the position they would have been in had the tort never occurred**. – financially speaking.

Tort victims **must** ensure that they **mitigate** their losses to limit the damages they suffer.

Types of damages

STEP 1. Special damages	STEP 2. General damages
Compensation for all past pecuniary losses and expenses that the claimant has suffered as a direct result of the injuries suffered	Compensation for pain/suffering/loss of amenity that C suffered plus future pecuniary losses and expenses

If there is a living Claimant:

Damages can be claimed for the Claimant's **pain, suffering and loss of amenity caused** by the accident.

Loss of amenity = the effect of the injury on the Claimant's enjoyment of life.

Damages can also be awarded for **financial loss** caused by the injury itself. – eg. not being able to work will allow a Claimant to claim for loss of earnings in addition to medical treatments.

Recoverable pecuniary (financial) losses:

- * **Loss of past income** – between the injury and trial/settlement based on the net wages lost.
- * **Loss of future income** – if the Claimant will lose out on earnings in the future due to the injuries:
 - Measure this as the difference in income before and after the injury multiplied by the number of years the income will be lost.
 - Add contingencies of life – eg. any possibilities that the Claimant would have lost their job.
 - This will be awarded as a lump sum reflecting the present value of the amount awarded
 - If the injury have likely shortened the Claimant's life expectancy, loss of future income will be reduced to reflect this.
- * **Cost of medical treatment** – both past and future. Do not count treatment provided by the NHS.
- * **Recoverable nonpecuniary losses** – including past and future pain and suffering and loss of amenity. – a person in coma will not recover for this while they were in coma.
- * **Damage to property** – measure this by the replacement costs.

If the Claimant dies from the injuries caused by the tort before the damages are paid out, their claim for damages will be paid out to the Claimant's estate.

If the victim dies:

Where the victim dies as a result of their injuries caused by the tort, the Claimants have a **separate cause of action** for bereavement.

Funeral expenses will also be recoverable.

Requirements for a bereavement claim:

- * The Claimant must show, that had the victim survived, they would have been able to bring a successful claim.
- * The Claimant must have been financially dependent on the victim.
- * The Claimant must fall within the statutory list of eligible relationships.

Statutory list includes only:

- The deceased's spouse/civil partner
- The deceased's cohabitant of more than 2 years
- OR
- The deceased's parents if the deceased was under 18 and never married.

The deceased's children are not entitled to bereavement payments.

Bereavement Claimants can only recover a fixed statutory sum which is £15,120.